

The Political Roots of Legal Access: Evidence from Village Councils in India*

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January 2026

Abstract

Politicians have long served as intermediaries for citizens navigating the state. Can elected representatives facilitate citizen’s access to the formal justice system? If so, what forms of legal mobilization can they facilitate, and can descriptive representation benefit those traditionally excluded from the rule of law? Justice seekers face formidable social and administrative costs that cause most grievances to remain outside the state’s purview. Politicians lower these barriers through a distinct form of constituency service: by exercising oversight and acting as intermediaries. I test this theory in 28,000 village councils in Maharashtra, India, leveraging population-based discontinuities in council size, paired with an original dataset of 3.8 million court cases. I find that additional council members cause an 82% increase in court filings, an effect driven by greater capacity and descriptive representation. Survey data from 88,000 respondents shows that the intermediation leads to greater capacity to solve local problems, while qualitative data documents these direct interactions and explains why intermediation is most effective for criminal disputes. These findings reveal how political institutions act as a catalyst for legal mobilization.

*I would like to thank Rikhil Bhavnani, Yoshiko Herrera, Adeline Lo and Sameer Deshpande for their feedback on this work. Additionally, I would like to thank Priyadarshi Amar, Sivaram Cheruvu, Rahul Hemrajani, Kathryn Hendley, Jayanth K. Krishnan, Mitra Sharafi, Ariel White, and participants of the Comparative Politics Colloquium (UW–Madison), Models, Experiments and Data Workshop (UW–Madison) for feedback that helped improve the paper. A special thanks to Christina Koch and Tim Cartwright from the Center for High Throughput Computing at the University of Wisconsin–Madison for help and guidance with computing resources. This research was conducted under University of Wisconsin–Madison’s Institutional Review Board (submission IDs 2023-1093, 2023-1339, and 2024-0780). I acknowledge financial support of the National Science Foundation Law and Science Dissertation Grant, the Institute for Regional and International Studies, the Scott Kloeck-Jenson Fellowship and Summer Initiative Grant from the University of Wisconsin–Madison to conduct research for this work.

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1 Introduction

Over two-thirds of the world’s population has unmet civil and criminal justice needs ([Long and Ponce 2019](#)). These grievances, ranging from land disputes and wage theft to crime and corruption, are everyday justice problems that rarely see the insides of a courtroom. When legal issues remain unresolved, individuals risk losing their livelihoods, property, and fundamental human rights. Access to justice is therefore central to protecting people’s rights and social stability—when people have confidence that their disputes will be resolved, conflicts do not escalate into violence and other forms of unrest. People can access justice when issues are resolved in line with the laws of the jurisdiction ([Sandefur 2019](#)), and courts form the central institutions where such justice can be administered.

However, the vast majority of grievances are not addressed by formal institutions, leaving vulnerable citizens outside the protection of the rule of law, creating a massive justice gap. To address this, a growing body of literature highlights the promise of “justice workers”—intermediaries embedded in local communities who help citizens navigate the justice system and overcome barriers in accessing legal remedies ([Sandefur and Burnett 2024](#)). While existing comparative literature has long documented the role of communities and village-level authorities in dispute resolution—from panchayats in India to customary leaders in Sub-Saharan Africa and Indonesia ([Galanter 1981](#); [Baldwin and Ricart-Huguet 2023](#); [Ellickson 1994](#); [Van Der Waal 2004](#); [Just 2001](#))—this body of research has not yet looked at whether elected politicians can play a role in closing the justice gap by helping citizens approach and access the formal legal system.

As countries experiment with the decentralization of political and legal institutions to help people access justice, a critical question is whether elected politicians: members of national, state or local bodies, can help litigants overcome constraints and access the formal legal systems. Given that politicians have long acted as intermediaries for citizens navigating the state, determining whether representatives can serve as a bridge to formal state courts is not only theoretically important, but also informs policies for designing institutions that can strengthen the rule of law.

In this paper, I examine whether elected representatives of village councils can help citizens access justice. When individuals face disputes, they often approach the most proximate state representative who can assist them with legal advice—typically, an elected politician. The politician’s intervention can take two forms: direct informal mediation, typical of civil cases, or directing access to the law enforcement system, typical of criminal cases. Representatives can thus provide advice and assist aggrieved citizens with their justice issues and increase the likelihood that the state officially records and processes legal violations.

The motivation for this form of intermediation is rooted in representation and electoral incentives. Given that politicians are ambitious and operate within competitive electoral environments, they have a strong interest in cultivating a reputation for efficacy and responsiveness. Assisting with disputes thus becomes an opportunity to provide constituency service. By helping a diverse body of citizens access courts or engage with law enforcement, politicians not only reinforce their local influence but also create tangible opportunities for credit-claiming during elections. From a citizen’s perspective, approaching elected politicians for help with disputes is a form of claim-making—the everyday strategies through which citizens pursue fulfillment of their rights (Kruks-Wisner 2018). Such claims are enhanced through descriptive representation—when representatives share backgrounds with citizens, citizens are more likely to approach them for help with disputes. Politicians thus form the bridge that can transform a private grievance into a formal claim.

Empirically identifying whether and when politicians engage in this type of work is challenging. While surveys can capture individual experiences, the small subset of the population engaged in disputes makes it difficult to generate representative samples. Furthermore, establishing a causal link is hindered by the presence of endogenous factors such as litigant’s social capital or distance to legal and law enforcement institutions. I study access to justice in Maharashtra, India, that allows me to address these challenges in two ways. First, I assemble a novel dataset of over 3.8 million cases filed in the courts of first instance from litigants of over 28,000 villages in Maharashtra, that allows me to measure legal access at the most granular level. Second, I leverage a regression discontinuity design—my approach takes advantage of a unique rule in the state, where two additional elected members are assigned to village

governments at strict, population-based cutoffs. These cutoffs provide a source of exogenous variation in the size of the village council.

While the official mandate of village council members in Maharashtra involves the provision of public goods and services,¹ they frequently play a role as street-level agents of the state by coordinating with the police, enforcing official policies, and adjudicating disputes (Goyal, Van Noort, and Ahrenshop 2022). To test this, I combine massive datasets on case filings and village councils with high-resolution data on election timing, candidate profiles, election winners and the census. I supplement these findings survey data to study mechanisms and qualitative interviews to contextualize the role played by council members.

The empirical analysis reveals a substantial and statistically significant effect of council size on legal mobilization. I find that villages that are assigned the larger councils experience a near-doubling in the volume of cases registered with the formal justice system. Specifically, case filings increase from a baseline of 1.3 cases per year to 2.3 cases per year. This effect is almost entirely driven by criminal cases—the number of criminal cases filed increases by 112% in villages with larger councils, whereas I find no statistically significant evidence that council size affects the registration of civil disputes. These results suggest that while informal mediation may remain the primary mode for resolving civil disputes, representatives serve as a critical bridge to formalize criminal claims that require the state’s investigative authority. Crucially, I find that political influence is limited to the filing stage of a case but cannot influence its timely adjudication.

I further argue that this increased access is on account of expanding the human resource capacity to assist with complex legal grievances, and greater descriptive representation. I show that larger councils have greater descriptive representation of non-dominant groups, using intermediate outcome tests (Blackwell, Ma, and Opacic 2024)—that villages assigned councils with additional members elect more women and members of marginalized groups, even after accounting for mandatory reservation policies (quotas). Importantly, this increased representation translates into higher filing rates by female litigants. However, I find no corresponding increase in filings of cases that concern crimes against women, suggesting the

¹see Chapter 3, Bohlken (2016) for a description of local politics in India

limits of the additional council capacity in addressing gender-based violence.

Next, I evaluate whether this increased political capacity leads to resolution of local problems and improves citizens' perceptions. I turn to a representative panel survey conducted with over 88,000 respondents across over 200 villages, and leverage a difference-in-differences design. While all villages in this sample experienced population growth, several of them crossed a population threshold that triggered the assignment of additional council members. I demonstrate that respondents in the "treated" villages had better evaluations of council capacity across several dimensions, most notably regarding council members' ability to address local disputes.

Finally, I draw on two distinct sets of qualitative data with elected politicians that explains these patterns. First, I collected 19 informational interviews conducted with council members to map their self-reported roles in dispute resolution. The informational interviews confirm that council members employ different strategies to deal with civil and criminal issues in their village. Second, I leverage a direct behavioral measure by coding field notes collected by research assistants from shadowing political elites in villages ([Bussell 2020b](#), [2020a](#)). These coded notes provide evidence of direct assistance with case registrations with the law enforcement: out of 14 village heads shadowed over 3 days, 6 report visiting the police station for various reasons, the chief among which is to help citizens file complaints.

This paper makes three important contributions. First, I propose and test a novel theory on the role of politicians in facilitating access to justice and legal mobilization ([Black 1973](#)). While previous scholarship has viewed village-level actors as providers of informal dispute resolution, I demonstrate that elected representatives can serve as intermediaries to help citizens access the formal legal systems. The findings underscore how local institutions shape dispute resolution and legal behaviors in weak states ([Blattman, Hartman, and Blair 2014](#); [Brulé 2020](#)). Crucially, this paper challenges the assumption that local authorities undermine the rule of law: instead, I show how non-adjudicative political bodies can strengthen formal adjudicative institutions by lowering the barriers to entry ([Sarat and Grossman 1975](#)).

Second, I extend the literature on political decentralization by looking at how a specific factor of institutional design (council size) affects local-level outcomes. While existing research has

examined the effects of legislature size on fiscal policy and public goods (Weingast, Shepsle, and Johnsen 1981; Chen and Malhotra 2007; Höhmann 2017; Pettersson-Lidbom 2012; Lewis 2019; Mignozzetti, Cepaluni, and Freire 2024), I expand this enquiry to study forms of constituency service. As politicians can determine a citizen’s ability to make legal claims, I show that facilitating access to justice can be a form of deliverable political good (Gallagher, Kruks-Wisner, and Taylor 2024).

Finally, this study makes an empirical and methodological contribution to the study of village governments in India. Prior research has noted the role of rural politicians as local intermediaries, shaping the allocation of benefits (Chattopadhyay and Duflo 2004; Dunning and Nilekani 2013; Besley et al. 2004; Besley, Pande, and Rao 2012), access to the state and its resources (Bussell 2019; Kruks-Wisner 2018), and their contribution to democratic processes (Besley, Pande, and Rao 2005; Parthasarathy, Rao, and Palaniswamy 2019). I provide a replicable framework for estimating the causal effects of these local governance outcomes—a strategy that can be extended to various Indian states. Furthermore, by assembling a massive village-level dataset encompassing the full universe of cases filed in the lower courts of the Indian judiciary in Maharashtra, this study contributes to the growing body of scholarship that examines the dynamic interplay between law and society at the grassroots level in India (J. K. Krishnan et al. 2014; Kokal 2019; Galanter and Dhavan 1989; Goyal, Van Noort, and Ahrenshop 2022).

2 Theoretical Expectations

Access to justice is a broad concept: researchers and international organizations have linked access to justice to the protection of human rights, social stability and economic development (Deseau, Levai, and Schmiegelow 2025). A core component of this concept is the legal capacity of citizens to overcome physician and social barriers to access formal judicial institutions. Such legal mobilization (Black 1973) enables formal adjudicative institutions (courts) to become involved in the interpretation and management of conflict (Sarat and Grossman 1975). The structural design of state courts—grounded in codified laws and subject to both public and appellate oversight—renders them uniquely equipped to deliver both procedural

and substantive justice.

Histories of disputes show a pyramid-shaped dispute processing and resolution, wherein behavioral filters reduce the overall volume of cases taken to court. Many justice problems do not end up in court at all—they receive no legal attention, forming unmet legal needs (Sandefur 2019). Would-be litigants evaluate the payoffs of pursuing a claim, consulting a lawyer, filing a lawsuit, and taking the case to trial (Genn 1999). Given that each step is costly, only a fraction of all disputes end up as cases in the formal legal system. The situation is particularly difficult for rural litigants, who face higher costs to getting their legal needs met (J. K. Krishnan et al. 2014; A. Hoffman and Strezhnev 2023).

As a result, people turn to local informal legal institutions consisting of village elders, local leaders and officials who dispense traditional or customary forms of justice (Gauri 2009). This form of legal pluralism prevalent across the Global South, and surveys across countries have noted the outsized preference for these informal institutions.

In order to help citizens overcome persistent problems of accessing formal legal institutions, countries across the world have considered both demand and supply side reforms. For instance, Indonesia devolved dispute resolution to customary village-level institutions, giving binding authority to village heads (Clark and Stephens 2011), while the Government of Eritrea organized community courts to enable community participation in the justice process (Andemariam 2011). More recently, research has shown how local community mobilization through justice workers (Sandefur and Burnett 2024) can help citizens overcome informational and transactional constraints to pursue legal issues through courts. In what follows, I discuss how politicians can play a very similar role to that of justice workers—in helping citizens overcome constraints and access justice.

Elected representatives intervene and help with citizens’ disputes as a form of constituency service: the non-legislative tasks a representative performs to help individuals or groups within their district (Eulau and Karps 1977; Fenno 2003). While most of the scholarship on constituency service has focused on advanced democracies, comparative literature on the various forms of constituency service remains scant. Typically, constituency service has been studied using audit studies that raise the concerns about public goods (McClendon 2016)

and queries about how to apply for public services (Distelhorst and Hou 2017), but the needs of citizens can vary significantly across economic and electoral contexts.

In societies with informational gaps concerning legal and law enforcement systems, political institutions can play an important role in helping citizens with their disputes, using constituency service as a tool to manage social conflict (Distelhorst and Hou 2017). This is because the elected position affords the representatives influence to solve particular problems of accessing the state by serving as an intermediary between citizens and the state. By using their influence to intervene between the state, bureaucrats and citizens, representatives can display their concern and responsiveness to the problems faced by their constituents. Helping people with their justice problems has electoral payoffs: representatives gain opportunities for credit-claiming at the time of elections, allowing them to build strong, lasting relationships with their voters which drives the incumbency advantage (King 1991). Such gains can make the representatives willing to help a very broad base of individuals.

When a person approaches an elected representative for help with disputes, the politician’s intervention can take two forms: formal institutional facilitation or informal mediation. Two hypotheses follow from this.

First, I hypothesize that representative acts as a procedural guide, helping the aggrieved party navigate the bureaucracy of law enforcement to register formal complaints. Representatives facilitate access to the formal legal system by directly influence disputes that are reported to the state by providing information and advice². Next, they can affect disputes that are recorded by the state, since representatives have greater power and influence than common citizens to overcome bureaucratic hurdles. Their presence makes bureaucrats responsive to citizen’s complaints through the “long route” of accountability, wherein politicians hold the service providers accountable (Devarajan, Khemani, and Shah 2005). Hence, I expect more citizens to overcome bureaucratic hurdles to access the formal justice system on increasing the number of representatives in a fixed jurisdiction.

H_1 . Increasing the number of elected representatives increases access to the formal

²They can also indirectly influence reporting through a symbolic effect: seeing marginalized groups in positions of power can increase the self-confidence of to approach authorities (Iyer and Mani 2012).

justice system

Criminal matters demand systematic investigation, forensic resources, and coercive authority, which make it difficult for representatives to independently adjudicate and enforce criminal judgements (Sternlight 2007). Consequently, for criminalized grievances, politicians facilitate greater access to formal legal authorities, ensuring the dispute enters the official state record where it can be addressed by specialized judicial resources.

H_{1a} . Increasing the number of elected representatives increases access to the formal justice system, particularly for criminal cases.

Typically, civil grievances—such as those involving family disputes, land boundaries or debt—are amenable to mediation because they rely on local knowledge and social consensus. In this case, the representative assumes a quasi-judicial role, counseling the parties and negotiating a resolution outside the state’s purview (Sarat and Grossman 1975). Hence, I expect that citizens resolve disputes through mediation on increasing the number of representatives in a fixed jurisdiction.

H_{1b} . Increasing the number of elected representatives decreases access to the formal justice system for civil cases.

Importantly, increasing the number of elected representatives increases the capacity of politicians for constituency service. Consequently, representatives enjoy reputational gains from being able to provide services to citizens.

H_{2a} . Increasing the number of elected representatives increases capacity to help with local problems

Finally, politicians solve these problems for citizens as a form of representation (Pitkin 1967, 155). However, not all citizens are equally likely to request constituency services from representatives (Grossman and Slough 2022), and shared identities play an important role in whether the help is provided. A robust body of literature has found that representatives who share personal characteristics with particular citizens (descriptive representation) leads to greater substantive representation for the group (Broockman 2013; Butler and Broockman 2011; Chattopadhyay and Duflo 2004)—on account of intrinsic, personal concern and political

incentives. Since politicians can facilitate access to justice as a service for constituents, political representation of non-dominant groups should increase access to justice for such groups in the justice system.

H_{2b}. Increasing the number of elected representatives improves descriptive representation, increasing access to the justice system for a broad range of citizens

Although the theory focuses on elected representatives serving as intermediaries, it applies more broadly to other non-elected intermediaries with strong incentives to provide services to citizens. Examples of such intermediaries include village elders, brokers and state officials. It applies also to contexts where individuals have a strong connection to elected representatives. This implies representatives closest to citizens based on geography or social backgrounds are most likely to help with citizens' legal grievances. In doing so, the theory focuses on individual-level hurdles for dispute resolutions, that are eventually handled by both judicial and political institutions. This is distinct from larger mobilization of larger social and political movements, wherein incentives for political intermediaries are not clear.

Finally, while the theory applies to informal dispute resolution, resolution of formalized disputes is not guaranteed. political influence cannot influence timely adjudication of disputes through formal institutions if official authorities—the courts and police—are adequately shielded from political interference through the separation of power. Politicians have a weaker ability to influence case-level outcomes such as decision quality, fairness or the time it takes to reach a decision. Thus, while politicians can influence the whether citizens are able to approach legal and law enforcement institutions, they cannot influence the outcomes and resolutions beyond this step.

3 Context: Village Councils in Maharashtra, India

India's post-independence constitution directed the establishment of local self-government—the earliest rural local government bodies have existed in independent India since 1959, and after 1993, were formalized across all states. In 1993, the Government of India passed the Indian Constitution (73rd Amendment) Act, which mandated the creation of India's rural

representative bodies—the Panchayats. This formalized and decentralized power to the third tier of government. The reform sought to create a three-tier system of local governance comprising *gram panchayats* (village-level bodies), *taluka panchayats* (sub-district level bodies) and *zilla panchayats* (district-level bodies).³ Each state was to set up such a three-tier system of local government, whose bodies were to be elected every five years. Additionally, the laws delegated several areas of administration, development and fiscal authority to the elected members.

The law entrusted village councils (*gram panchayats*) with both administrative and developmental functions—states could devolve 29 functional areas to the village councils. These involved activities like managing and monitoring facilities for water provision, sanitation, education, public health and roads (Chaudhary and Iyer 2022). Additionally, health and education monitoring is also carried out by the council members—for instance, the maintenance of schools and monitoring of teachers comes under their purview (Chaudhary and Iyer 2022). Further, the new legislation also called for states to set up State Finance Commissions to provide recommendations on revenue-sharing and making grants to the village councils. However, very few states delegated the control of funds and most of these bodies continue to rely on the central or state governments for their revenues (Chaudhary and Iyer 2022).

Each village council was headed by the ‘pradhan’ who could be elected directly or indirectly. Village council members, including the council head, are the most influential local politicians, who are tasked with implementing public works, social justice projects and land allocation, among other responsibilities (Brulé 2020).

India has a long tradition of dispute resolution at the village level— Meschievitz and Galanter (1982) explain that the term *panchayat* means the ‘coming together of five persons,’ and the meeting of five or more members of a village or caste to judge disputes was a prevalent practice. These bodies could be organized along caste lines, based on village boundaries or involve the members of trade guilds or artisan groups to formally or informally hear

³These have slightly different names across Indian states. For instance, in Maharashtra, the local bodies are set up in the form of a three-tiered system, wherein the *gram panchayat* is the lowest and most immediate elected-representatives body in a village. The next tier is at the block level (*panchayat samiti*), which forms a smaller area of a district—the councilors chosen from the entire district and chairpersons of the *panchayat samitis* make up the *zilla parishad*.

complaints.⁴

Courts in India are incredibly overloaded—on a per capita basis, India has only 20 judges per million⁵, while the United States has over 100 and Europe has over 200 judges per million (Rao 2022). Moreover, India’s courts are notoriously slow—congested courts delay the resolution of even minor disputes.

The judiciary in India is organized as a three-tier system. The Supreme Court is at the apex level of the Indian Judiciary, often described as the ‘most powerful judiciary in the world’. Further, there are 24 High Courts that encompass states or larger regions, and typically, each administrative district has a District and Sessions Court. Subordinate courts report to the District Court, which hears civil and criminal cases. This paper focuses on the courts of first instance: that is, the District Courts and Subordinate Courts.

Similarly, the Indian police system⁶ is also one of the most under-resourced—India has the second lowest police-to-population ratio in the world (Lee 2021).

Given the weak capacity of the Indian state, a number of approaches have been taken to distribute the burden of law and order—particularly to local politicians. Unlike in Maharashtra (the focus of this paper), in states like Bihar and Himachal Pradesh, village councils have judicial powers. In particular, in Bihar, village courts called *gram kachaharis* were set up in 2006, which are court-like institutions set up in every *panchayat* for resolving local disputes

⁴While the idea of village panchayats serving as “judiciaries of the village” is not new, the Government of India has tried to approach the challenge of access to justice through two routes. In 2006, the Ministry of Panchayati Raj of the Government of India announced the formation of a committee to prepare a ‘Nyaya Panchayat Draft Bill’, which would involve elected bodies to serve as adjudicators. Press reports suggest that the Law Ministry had expressed objections to this, since in the same period (in 2007), the Ministry of Justice and Law conceptualized the *gram nyayalays*—which decentralizes judicial responsibility to local (village) level judicial bodies in the form of “mobile courts” that are headed by judicial officers who are trained judges (as opposed to elected officials). The ‘Gram Nyayalays Bill’ was eventually passed in 2008 in both houses of the Parliament. While few remain operational, these so-called village-level courts are simply reassigned courtrooms located within existing subordinate courts, thus their title is nominal (Bail 2015).

⁵Judges are recruited based on their performance in competitive judicial examinations, the norms for which vary across states.

⁶Policing in India is organized at central and state level—at the central level, it includes the most elite members of the Indian Police Service (IPS), recruited through a centralized exam, and at the state level, it includes the State Police Services, recruited through a state-level exam. Several “non-gazetted” officers serve under them, comprising Inspector and Sub-Inspectors. Finally, about 85% of Indian police officers are at the ‘Constable’ level, whose daily jobs consist of patrolling, escorting prisoners or running errands for senior officers (Lee 2021).

with the involvement of local people.⁷ In this paper, I study Maharashtra, where elected representatives *do not* hold legal authority or official mandates to help with disputes.

3.1 Disputes in Rural India

With such vast gaps in the justice system, when and how do litigants choose to approach courts in India? I discuss findings from recent surveys on this topic. In 2017, a legal think tank in India conducted a nationwide survey to understand the various modes of dispute resolution used in India as a means to access justice.⁸ Fewer than 6% of respondents reported having been involved in a dispute in the past five years.

During the initial stages of a dispute, people turn to trusted sources to understand more about their dispute—approaching friends, family and village elders—particularly, 74% said they would approach family or friends, 49% would approach village elders, and 23% said that they would approach members of the village council.⁹ When asked whom they would not approach, 40% said the police, 32% said lawyers, and 13% mentioned legal service authorities. This highlights an important pattern: at the initial stage of a dispute, people tend to seek advice from those closest to them and generally distrust actors associated with the legal or law enforcement systems.

Among respondents who had experienced disputes and sought resolution, 70% said they would pursue resolution through the courts, while 30% opted for non-court methods. Notably, most respondents who preferred court-based resolution belonged to higher-income groups, whereas those opting for non-court methods were predominantly from lower-income groups. For certain types of disputes—especially those involving the government or police, as in criminal cases—courts remained the preferred method of resolution.¹⁰

⁷Kumar, Arun, “Panchayati Raj Day: How Bihar’s village courts bring down case load on judiciary”, Hindustan Times, 24 April 2023. The government trains the members of the village court (which includes sarpanch, deputy sarpanch, elected members and the secretary).

⁸The survey employed random sampling and collected responses from over 50,000 individuals. The information gathered includes demographic data, perceptions regarding disputes and information on disputes resolved through courts and through non-judicial means.

⁹The percentages are based on multiple-choice responses.

¹⁰For instance, 91% of disputes with the government, 74% of disputes with the police and 88% of insurance related cases were resolved by court, because of the relative absence of non-court avenues to resolve such disputes.

This suggests that council members—the elected representatives of the *gram panchayats*—may influence the filing of formal complaints. They often act as initial advisors to would-be litigants, offering guidance on whether pursuing a case is worthwhile. Thus, qualitative descriptions of the context help support our theoretical expectations: by serving as initial advisors, local politicians can influence case reporting and mediation in the initial phases.

4 Data and Empirical Strategy

4.1 Data

Council Elections Data: I collected data on elections conducted in each council from the State Election Commission’s website. This contains important information on candidates, winners, winning margins and turnout. The earliest election recorded on the website is from 2017, and data were scraped up to the 2022 elections. I further assemble data on council characteristics (date of establishment, area, facilities etc.) from *MahaEgram*, a data repository of village councils managed by the Rural Development and Panchayat Raj Department of the Government of Maharashtra.

Village Councils: The number of members in each council depends on the population of the jurisdiction of the village council. Typically, a village council is constituted for a single revenue village; however, some councils span over two or three villages. I collect data on councils and villages from the Local Government Directory—a dataset that defines unique land region boundaries for rural local governments that map on to India’s census data. The government maintains this dataset as an “up-to-date list of respective administrative units”. I use this data to list over 28,000 village councils in Maharashtra, and merge it with other datasets like *MahaEgram*, that allows me to focus on subsets of councils that are created before 2015. A map of all councils in Maharashtra, and the number of members in each council is shown in Figure 3 in Appendix Section 1.4. I further link this data to the Socioeconomic High-resolution Rural-Urban Geographic Platform for India (or **SHRUG**) using village census identifiers. This allows me augment the data with data from the 2011 census with village demographics and characteristics like education and income levels, availability of transport,

infrastructure, and other variables.

Justice Data: My main outcome is access to justice—whether people approach courts to enforce their legal rights. In practice, this would be data on the registration of civil and criminal complaints in the formal justice system.

To access the formal criminal justice system in India, one would first register the crime at a police station, and after preliminary investigation, the case would be sent to the court assigned to the police station ([Jassal 2024](#)).

Pursuing formal civil litigation in India involves drafting a complaint and submitting it to a court, along with the court fees and processing fees. The complaint would typically be drafted by a lawyer.

My outcome only considers the cases that get registered at the courts. Considering only the cases that filter through the various levels and reach the courts serves as a hard test of my theory that seeks to understand access to the formal justice system. A limitation of this outcome is that I am unable to capture if council members are facilitating greater access to other stages in the dispute resolution process.

For the data on court filings, I obtain the universe of case records from the Indian eCourts platform. This is a pan-India project under the Department of Justice of the Government of India that aims to transform the Indian judiciary by incorporating information and communication technologies. This project involved large-scale digitization of cases, which I use in my analysis. The public-facing platform includes the case metadata, which involves the acts and sections under which the case was filed. For criminal cases, details of the case come from the First Information Report¹¹ under which the case was filed. Next, it includes the details of the actors: litigants, lawyers and judges. Finally, it captures the relevant dates during the lifetime of the case: the date of filing, hearings, decisions and so on. In some cases, the text of the actual judgment is also reported.

This data concerns Maharashtra’s lower judiciary, consisting of District and Sessions Courts

¹¹Jassal ([2020](#)) explains that registration of the crime report—known as the ‘First-Information-Report’ is a citizen’s first step towards formal access to justice. These complaints are registered by an inspector called the ‘station house officer’ who serves at local police stations.

and covers both civil and criminal cases, scraped from the government website.¹² For all cases, I capture the location from where the complaint originated—for rural areas, this is a census village; for urban areas, it is a census ward. Earlier work using such data for all of India indicates that the data is reliable between 2010 and 2018 (Rao 2022; Ash et al. 2025). I expect the data to have been regularly updated, given that Maharashtra is a state with higher state capacity compared to other states in India.

I restrict my analysis to a subset of cases in which all parties associated with a case have their home addresses in the same village, and the case is filed in courts at the level of Civil Judge Junior Division, Civil Judge Senior Division or Judicial Magistrate First Class.¹³ I collected 3.7 million cases that were filed in the lower courts, and restricting to cases whose parties originated from a single village, I am able to analyze 1.3 million cases which make up 34% of total cases filed within this period.

In order to test different theoretical expectations pertaining to civil and criminal cases, I classify cases into categories using a case coding rule elaborated in Appendix Section 1.6.

Survey Data: To explore possible mechanisms, I rely on data from the National Council of Applied Economics Rural Economic and Demographic Survey (REDS).¹⁴ The survey collects data from a nationally representative sample of over 8,659 households in 240 rural villages in 17 Indian states.

¹²District Courts, Maharashtra https://court.mah.nic.in/courtweb/index_eng.php#, Last Accessed in December 2023 after which the data (without the village-level identifiers) can be accessed from the national eCourts repository.

¹³I make these restrictions for two reasons: first, I expect my theory to apply to disputes where all parties are from the same village, given that council members would be less likely to expend time and effort on issues that they may not be able to claim credit for. Second, cases that arise from multiple villages cannot be assigned as outcomes given that (1) the treatment village cannot be determined for such cases and (2) using such outcomes would violate the SUTVA assumption. I focus on subordinate courts that have unique jurisdictions that cover particular villages. Cases that are filed in subordinate courts do not involve large sums of money or long sentences. I need to make this restriction since the exact jurisdictions heard by senior judges cannot be determined from the data. For additional details on limiting the analysis to subordinate courts, see Appendix Section 1.7. The village of the party is determined by the address of the plaintiff and defendant filed in the system—these can be individuals or organizations. For criminal cases, if there are three accused, the addresses of all three will be entered in the system. Although the state is a “party” to the case, an address for the state is not entered in this case.

¹⁴Data has been generously shared by Andrew Foster.

4.2 Empirical Strategy

In this section, I focus on the empirical strategy to test H_1 , that pertains to whether increasing the number of elected representatives increases access to the formal justice system. A challenge to testing whether adding additional elected members to a village council affects access to justice is that villages with more members in a council may be systematically different from those that have fewer members in the council due to omitted unobservables. For example, villages with a greater number of members may be more populated, closer to courts, have more educated residents, and differ in their social culture. These differences in council characteristics can, in turn, affect whether aggrieved parties approach the courts. Therefore, a simple comparison between smaller and larger councils could result in bias.

To study this systematically, I would need to look at a case where there is a different number of elected members assigned to “similar” areas. To do so, I leverage the population-based cut-off that determines the number of elected council members in the villages of Maharashtra using a regression discontinuity (RD) design.

Maharashtra is a large state in the western part of India with a population of 112 million, and is divided into 36 administrative districts. Each district is divided into sub-districts (*Talukas*), which are further divided into 28,000 village councils or *Gram Panchayats*.

The system to determine the number of local elected representatives to form a village council varies across Indian states. Regarding the composition of the councils, the 73rd Constitution Amendment in 1992, which mandated the creation of village councils, was ambiguous: the Act mentions that the “ratio between the population of the territorial area of a Panchayat at any level and the number of seats in such Panchayat to be filled by election shall... be the same throughout the State”.¹⁵, leaving the specifics up to individual states. Thus, there is heterogeneity in the size of a village council in each state: the number of council members in Kerala is between 13 and 23 members, while in Karnataka and Bihar, the number of members is determined by a population-based rule.¹⁶ Similarly, in Uttar Pradesh, the rule is

¹⁵Constitution of India, 73rd Amendment, <https://www.india.gov.in/my-government/constitution-india/amendments/constitution-india-seventy-third-amendment-act-1992>

¹⁶For every 400 (Karnataka) and 500 (Bihar) persons, there is one elected member—see <http://bit.ly/karnataka-rule> and <http://bit.ly/bihar-rule> respectively.

Table 1: Village Council Population based cutoffs for number of members.

Village Council Population Thresholds	Number Of Council Members
<1500	7
1501-3000	9
3001-4500	11
4501-6000	13
6001-7500	15
>7501	17

Source: Maharashtra Village Panchayat Act, 1959. Population thresholds to be based strictly on previous census conducted.

determined by population cut-offs ([Narasimhan and Weaver 2023](#))—a Panchayat area having a population of 1000 gets 9 members, 1000-2000 gets 11 members, 2000-3000 gets 13 members and more than 3000 gets 15 members.

In this paper, I exploit a version of this rule in Maharashtra, which was one of the few states with effective councils and regular elections before the 73rd Amendment ([Chaudhary and Iyer 2022](#)). Moreover, it has one of the highest rankings regarding actual devolution of power to the councils ([Unnikrishnan 2016](#)). Elections involved electing the *pradhan* (head) and the members of the *Gram Panchayat*, and in recent years, they have been conducted both by direct election by the citizens, as well as through indirect elections (wherein the village head is elected indirectly among the elected members) ([Heinze 2025](#)).

In Maharashtra, the size of the local council is based on population cutoffs, which motivates a regression discontinuity (RD) design. The RD design exploits the continuity in the running variable—that is, the population of the council and the discontinuity at the cutoff between being assigned a smaller or larger council size. As per the Maharashtra Village Panchayat Act of 1959, the number of council members is determined by population cut-offs which I tabulate in Table 1. Here, we see that at a threshold of 1500, villages above the threshold have 9 elected members who form the village council, while those with a population below the threshold have 7 elected members that form the village council.

For councils with populations close to the threshold, the treatment (addition of two council members) can be assumed to be as-if randomly assigned. This is the first time this research

design is being used in the Indian context; however, a related research design has been used in a different context by Mignozzetti, Cepaluni, and Freire (2024), where the authors study the effects of legislature size on public service provision in Brazil.

Given the multiple cut-offs, I can either normalize and pool the results to form a single cutoff, or estimate effects at each cutoff using a multi-cutoff regression discontinuity design (Cattaneo et al. 2016). The multiple cut-offs can help overcome a common shortcoming of regression-discontinuity methods in estimating causal effects—with just a single cutoff, we do not know if the treatment effect persists for those units whose scores on the ‘running variable’ are farther away from the cut-off (Cattaneo et al. 2021).

While a design with multiple cutoffs can circumvent this issue, it is important to establish that the estimates are not contaminated by multiple treatments, which can be a common feature of regression discontinuity designs. Indeed, population thresholds can affect not only the size of councils, but also eligibility for public programs (Asher and Novosad 2020) as well as electoral systems in play (Arora 2022). I systematically searched for government programs that would contaminate any of the five cutoffs shown in Table 1. While no such programs appear to use the 1500, 4500, 6000 and 7500 cutoffs, a cutoff of 3000 is being used to determine eligibility for several schemes and I therefore remove it from further analyses. Further, other cutoffs at 4500, 6000 and 7500 not only change the size of the council, but also determine the number and size of wards within the council territory. I choose to fix the treatment as the addition of two council members, that happens at each cutoff.¹⁷

Thus, I leverage a sharp regression discontinuity design by pooling all the valid cutoffs, using population as the running variable. Population determines the number of seats in each council.¹⁸

I define causal effects in the potential outcomes setup as follows: $Y_i(0)$ and $Y_i(1)$ are the number of cases filed from council i where $Y_i(0)$ is the measure of cases on the left of the threshold (the control condition) and $Y_i(1)$ is the measure of cases to the right of the threshold (the treatment condition). The population of the council is denoted by X_i . The causal effect

¹⁷Information on heterogeneity at each cutoff is provided in Appendix Sections 2.1 and 2.2.

¹⁸For a test of compliance, see Appendix Section 2.5.

of an increase in council size by two members can be given as $Y_i(1) - Y_i(0)$. However, since both cannot be observed at the same time for individual councils, we can compute the average treatment effect exactly at the cutoff c as follows:

$$\tau = \mathbb{E}[Y_i(1) - Y_i(0)|X_i = c] = \mathbb{E}[Y_i(1)|X_i = c] - \mathbb{E}[Y_i(0)|X_i = c] \quad (1)$$

The key identifying assumption is that $\mathbb{E}[Y_i(1)|X_i = c]$ and $\mathbb{E}[Y_i(0)|X_i = c]$ are continuous in X_i , which ensures that all unobserved variables and confounders are also continuous in X_i . This allows us to use the observations to the left of the cutoff as counterfactuals for the observations to the right of the cutoff. I collect cases for each village v that is nested within a council i , over eight years, with each year denoted by t ¹⁹. In Appendix Section 1.1, I visually show the trends over time. The jurisdiction of each council can comprise of one or more villages (for a spatial distribution, refer to Appendix Section 1.2). Thus, my preferred specification is to capture the different levels and the temporal aspect of the data, by clustering the errors at the council-year level as follows:

$$Y_{vit} = \tau D_i + f(X_i) + \epsilon_{it} \quad (2)$$

Where Y_i is the outcome for village v in council i in year t , D_i is an indicator for the treatment (defined as the addition of two council members), ϵ_i is the error term, $f(x)$ is a polynomial function of the running variable—typically either linear, quadratic, cubic or quartic, and τ gives us the average treatment effect at the cutoff.

The treatment effect τ can be estimated using non-parametric techniques within a narrow bandwidth on each side of the cutoff. In my preferred specification, I use linear regression

¹⁹Although I have data over time that could have allowed me to leverage a difference-in-discontinuities design, note that the treatment is assigned in the year of the census (2011) and the case-level data I collect is all from the period after the census is conducted, that is, between 2015 and 2023. Thus, a difference-in-discontinuities is not applicable in this scenario

equations on either side of the cutoff, with a triangular kernel (wherein observations close to the cutoff have greater weights) and I use the mean-squared error (MSE) approach to choose bandwidths to obtain the local average treatment effect (LATE), or τ .

4.3 Key Assumptions of Identification

As discussed above, the key identification assumption in a regression continuity design is that the outcomes for the treated and untreated units are continuous in X_i around the threshold $X_i = c$ where X_i is the running variable and c denotes the cutoff. This gives us the ability to estimate the treatment effect.

While the identification assumption is fundamentally untestable, we can increase the credibility of the regression discontinuity design using the following approaches.

Continuity in Running Variable: First, I conduct a density discontinuity test. This helps us assess whether individuals in councils can manipulate the running variable X_i —that is, the population in our case. Manipulation in this case would imply sorting: the concern is that a local council can select into either side of the discontinuity through corruption, perhaps because smaller councils can help local elites secure their power and positions by falsifying the population numbers. In such a scenario, the population distribution across villages will not be smooth.

We can assess whether there are distributional imbalances in the running variable on either side of the cutoff. I run the Cattaneo, Jansson, and Ma (2020), using local polynomials ranging from the first to fourth order. The null hypothesis implies that there is no manipulation. For each order, the p-values are as follows: local linear (0.78), quadratic (0.61), cubic (0.57) and quartic (0.95). This implies that we have no evidence of manipulation. The test is visually shown in the Appendix Figure A4.

Continuity in Observable Characteristics: Second, the identification implies that influences on other council characteristics are also continuous in X at $X = c$. If the measures of pre-treatment covariates are not balanced across the control and treatment group, they might confound the estimates of the treatment. I test this by analyzing the means for

Table 2: Tests of Covariate Balance

Covariates	Units	Control	Treatment	<i>p-val</i>
All weather road	1/0	0.68	0.70	0.14
Public transport available	1/0	0.86	0.87	0.16
Internal road	1/0	0.37	0.36	0.67
Distance from HQ	km.	54.10	54.51	0.61
Graduates+	%	0.03	0.03	0.31
High income (INR 5000+)	%	24.23	24.20	0.95
High income (INR 10000+)	%	7.53	7.77	0.23

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. I take the means of observations within a bandwidth of 300 below and above the cutoff. The units column indicates the units of a measure: they can be either be for binary (roads, public transport availability) or continuous (distance, land, number of graduates, shares) variables. All variables are measured based on data from the 2011 census or the 2011 socio-economic caste census, as compiled in the ‘SHRUG’ dataset. ‘p-val’ indicates the p-value from two sided t-test. The treatment is regressed on the jurisdiction’s characteristics to conduct a joint hypothesis test, which imposes restrictions on multiple coefficients. I fail to reject the null hypothesis that the coefficients of the predictors are jointly 0, given a p-value of 0.37 associated with an F-statistic of 1.08.

larger and smaller council sizes in Table 2 below for a range of outcomes within a constant bandwidth.

For the analysis in Table 2, I first assemble a list of pre-treatment covariates that could be possible confounds—any imbalances on these may imply that the estimated treatment effects are due to other confounding factors, and not simply due to the increase in council size. We see that the p-values for all are greater than 0.05 thus we fail to reject the hypothesis that they are statistically distinguishable.

In the Appendix Figure A5, I show graphically that variables like connectivity (roads, availability of transport), geographic characteristics (distance to district headquarters, courts and police station) and socio-economic factors (education, income) are similar in treated and control villages (on either side of the cutoff).

5 Main Results

To test my theory, I present three sets of empirical results. I use a sharp regression discontinuity design as evidence to show that increasing council size increases access to justice, particularly

for criminal cases ($H_{1(a)}$). I leverage the same design and show that additional council members do not influence court processes, and that increasing the size of the council increases descriptive representation and cases filed by female litigants ($H_{1(b)}$).

5.1 Representatives increase Access to the Justice System

In this section, I present the results of the main analysis, that leverages a pooled regression discontinuity. I start by describing the standard RD plots for my main outcomes: all cases, criminal cases and civil cases.

While the plots themselves are not a formal test, they provide descriptive evidence along with visualizations of the global trend. We can see from Figure 1 that for each of the outcomes, there is an increase in cases filed to the right of the threshold, relative to the left. Importantly, there is an upward break for each of the outcomes at the cutoff—suggestive of the fact that increasing council size can increase the number of cases filed with the formal legal system. The y-axis in the third plot (pertaining to civil cases) is compressed, indicating that we might expect smaller effects for these two outcomes.

I now turn to a formal test of this relationship. I report local linear regression discontinuity estimates using Calonico, Cattaneo, and Titiunik (2014) optimal bandwidth and triangular kernels, with robust standard errors clustered at the council-year level in parentheses with a polynomial of degree one.

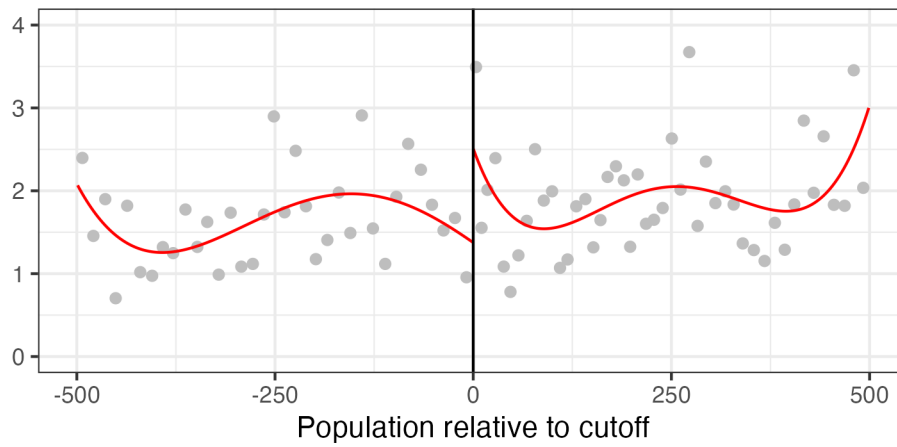
Table 3 Panel A displays the results without controls, and Panel B shows the results with controls that include the year of cases filed from the local body.²⁰ Each regression result shows the total number of observations, the effective number of observations below and above the cutoff, the estimated local average treatment effect τ and the robust bias-corrected p values.

From the results without controls (Table 3), we are able to confirm the positive effect of council size on access to the formal legal system as illustrated in the RD plots. Approximately

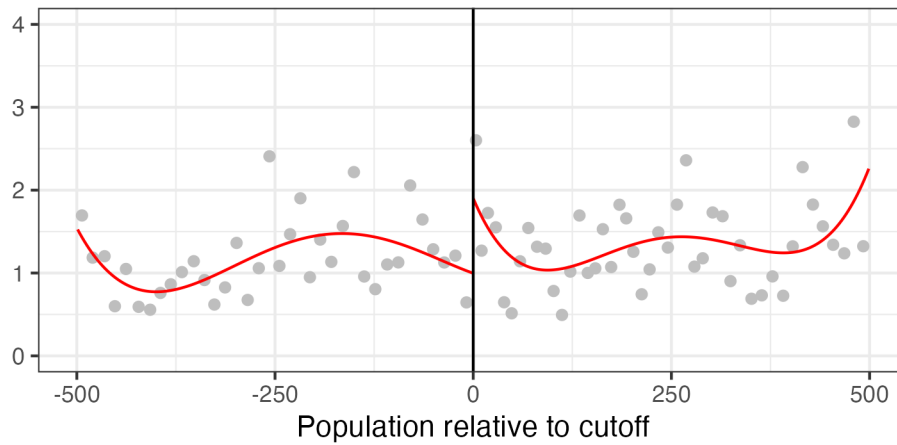
²⁰Mignozzetti, Cepaluni, and Freire (2024) show by simulation that adding controls (especially those responsible for the multiple thresholds) improves consistency and efficiency. I thus add indicators for each year control for seasonal effects, since adding controls improves consistency in a regression discontinuity setting (Calonico et al. 2019).

Figure 1: Regression discontinuity plots by case type

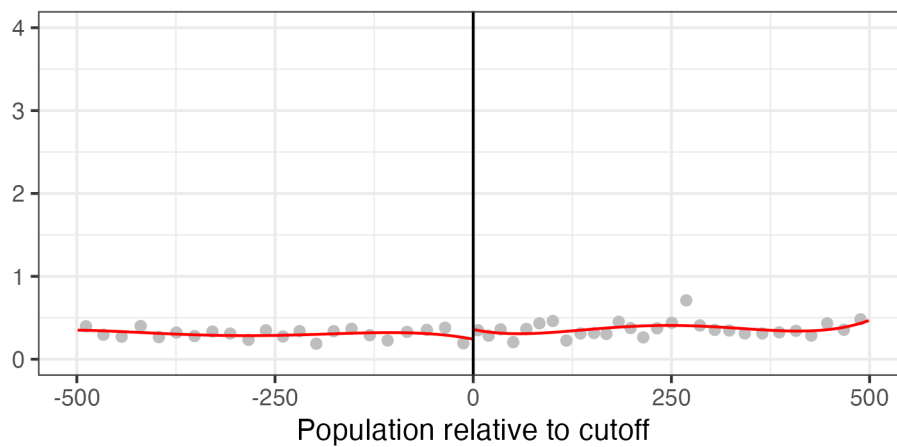
All Cases



Criminal Cases



Civil Cases



Notes: Each blue dot in the figure represents a count of cases for each village-year combination, based on quantile-spaced binning ([Calonico et al. 2019](#)). Red lines denote local polynomial regressions of order four.

1.3 cases are filed in a court from a village with a smaller council size each year. The results imply that increasing the size of the council by two members leads to a 82% increase in the number of cases filed. To assess the magnitude of the effect, I calculate the standardized mean difference (*Cohen's d*), wherein I use the standard deviation of the control group within the bandwidth. I find that the treatment results in an effect size of 0.3 standard deviation, suggesting a small-to-medium sized impact. The results are statistically and substantively similar when we add pre-treatment covariates to increase precision.

While a larger council increases the number of civil cases by 18%, the results are not statistically significant. Having a larger council more than doubles the number of criminal cases, corresponding to a 112% increase in criminal complaints registered, with a similar magnitude and direction when we add pre-treatment covariates to increase precision. These results provide support H_1 and H_{1a} —that increasing council size can increase access to the formal legal system, particularly for criminal cases.

In the Appendix Section 4.1, 4.2 and 4.3, I show that these results are robust to changes in bandwidth, district characteristics and functional form of the models used. The results are also robust to analyzing only the newly-formed councils as a natural experiment—see Appendix Section 4.5 and Table A11 for discussion and results, however these results are no longer statistically significant. Finally, I do not observe any statistically significant effects when analysing the outcomes using placebo cutoffs at half the cutoff values, as seen in Appendix Table A10.

Next, I test if additional council members affect court processes. While the previous section shows that the addition of two council members to the local body can increase case filings, I argue that they cannot meaningfully influence processes once the cases reach the courts. This is primarily due to two reasons: first, that the legal branch is sufficiently separated and insulated from the legislative branch, and second, that courts are extremely overburdened and slow due to a number of institutional reasons (Bhavnani, Bhogale, and Jadhav 2025) which hard to fix for individual cases, and to be influenced by village council members.

I test this using the case level data, which allows me to calculate the number of decisions issued for each village, and if decided, the average time (in days) that the case was decided

Table 3: Politicians Increase Access to the Justice System

Panel A: RD Estimates (without Controls)			
	All Cases	Criminal Cases	Civil Cases
LATE	1.05*** (0.22)	0.96*** (0.20)	0.05 (0.03)
Obs. (L)	88568	88568	88568
Obs. (R)	48624	48624	48624
Effective Obs. (L)	12672	11672	19064
Effective Obs. (R)	11528	10848	17192
Bandwidth	134	125	199
Bandwidth (Bias)	332	294	360
Panel B: RD Estimates (with Controls)			
	All Cases	Criminal Cases	Civil Cases
LATE	0.97*** (0.22)	0.85*** (0.20)	0.04 (0.03)
Obs. (L)	88568	88568	88568
Obs. (R)	48624	48624	48624
Effective Obs. (L)	12672	11952	25600
Effective Obs. (R)	11528	11056	21960
Bandwidth	135	128	261
Bandwidth (Bias)	326	295	404

Note: *p<0.1; **p<0.05; ***p<0.01. Robust standard errors in paranthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation is cases measured from a village in a particular year. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons.

in, using the filing and decision dates for each case. We confirm these expectations in Table 4: the additional council members are not able to meaningfully influence court processes. Even though litigants from villages file a greater number of cases, courts do not issue a larger number of decisions, or resolve the cases quickly. This has two implications—first, the influence of council members is limited to making a bridge to the legal institutions possible, and second, that the working quality of the courts does not diminish on account of being inundated by additional case filings.

Table 4: Politicians do not affect court processes

	<i>Dependent variable:</i>	
	Decisions	Time to Decision
LATE	0.12 (0.10)	−6.58 (26.61)
Obs. (L)	88568	8390
Obs. (R)	48624	5810
Effective Obs. (L)	30456	3349
Effective Obs. (R)	25576	3120
Bandwidth	309	329
Bandwidth (Bias)	524	497

Note: *p<0.1; **p<0.05; ***p<0.01. Robust standard errors in paranthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation is number of decisions and the mean time to decision for cases measured from a village in a particular year. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. Note that the fewer number of observations for the time to decision outcome is due to the fact that it can only be measured if a decision is issued for a case filed from the council in a particular year.

5.2 Capacity and descriptive representation drive increase in access

In this section I argue that that additional human resources available in the village council increases its capacity to do work and help constituents with their disputes (H_{2a}). Further, I test whether larger councils improve descriptive representation of non-dominant groups (H_{2b}). I show that larger councils increases the representation of non-dominant groups, partly driven by affirmative action or “quotas”, and further that this increases case filings for litigants from such groups. I rule out mechanisms related to changes in the electoral context in Appendix

Section 3.2.

5.2.1 Increase in Capacity

Increasing the size of the council mechanically generates two changes: it decreases political jurisdictions and consequently, increases the representative to citizen ratio. This can make citizens feel closer to decision makers, making them more approachable and efficacious: studies on changes in jurisdictional size have demonstrated that larger jurisdictions have a detrimental effect on citizens' internal political efficacy and satisfaction ([Lassen and Serritzlew 2011](#); [Hansen 2015](#)).

In the context of Maharashtra, at the first cutoff, we see that the number of representatives per citizen goes from one for 214 citizens to one for 166 citizens: a decrease in the number of citizens per politicians but an increase in the ratio of politicians to citizens by 28%. I argue that this increase in the representatives to citizen ratio is the main mechanism that is driving the results. Increasing the number of politicians per constituent increases the human resources available to perform constituency service. As has been shown before across political institutions, increasing the number of public officials in India—across bureaucracies ([Muralidharan and Sundararaman 2013](#)) and judiciaries ([Rao 2024](#))—improves the performance of institutions in obtaining their goals. We might expect similar benefits as we increase the size (capacity) of local governments, given our contextual knowledge that tells us that local officials are overloaded with work ([Dasgupta and Kapur 2020](#)), and that local elections are frequent and competitive ([Auerbach and Ziegfeld 2020](#))—making shirking and free-riding of politicians less likely.

A qualitative coding of the field notes collected by Bussell ([2020b](#)) reveals that council leaders spend between four and eight hours each day on various activities—including but not limited to—resolving issues, speaking with villagers and visiting government offices. Given that this work is both demanding in terms of time and resources, and is unpaid, the additional resources can make a sizable difference on the conduct of such work.

An alternative argument is that a larger body leads to more shirking, increasing the free-rider problem. However, this seems unlikely given the context of Indian elections, wherein

members have clear responsibilities (Bhavnani 2021). Moreover, local politicians in India face competitive elections and seek re-elections to the same or higher office, and especially given the fact that elections to councils having a larger size bring about 13% additional voters to turnout during elections (Appendix Table A9). Neglecting duties might hurt a member's reputation, winning chances and trust at the local level. If representatives are aware of this payoff, they would be most responsive as elections approach. I test for electoral cycles and show evidence of this in Appendix Table A6.

Further, I leverage survey data to test the observable implications of increasing the human resources available for constituency service and show that the additional work performed by council members benefits them through reputational gains and increases capacity to solve local issues. To empirically test this, I use data from the National Council of Applied Economics Rural Economic and Demographic Survey (REDS). This section analyzes the 2006-08 round of the nationally representative survey, which covers more than 8,000 rural households across India. I focus my analysis on more than 88,000 respondents from 233 villages in India, taking advantage of the fact that larger councils are allotted to villages between two elections, typically when they cross a population threshold.

The survey asks each respondent to rate the current and previous village council along various lines that can be considered measures of the perception of overall politician quality and ability. Each respondent is asked to rate council members' honesty and qualifications, and rate how well council members solve social and local problems. Responses are based on an ordinal scale (High = 1, Medium = 2, Low = 3, Not aware = 4). I exclude respondents who answered they were not aware to answer about the quality and ability of council members, and recode the outcomes based on an increasing score of evaluation for ease of interpretation. See Appendix Section 5.1 for the exact questions used in the survey.

I analyse the survey data with a difference-in-differences design, since ratings are collected for both the current and previous village council. Of the 233 villages, 64 villages are assigned a larger council in the current period, as compared to a previous period.

Thus, I can run a specification of the following:

$$Y_{it} = \beta_0 + \beta_1 \cdot \text{Post}_t + \beta_2 \cdot \text{Treat}_v + \beta_3 \cdot (\text{Post}_{it} \times \text{Treat}_v) + X_i + \epsilon_v \quad (3)$$

Here, Y_{it} represents the outcome for respondent i from village v at time t , Treat_v is an indicator that takes the value 1 if the respondent is in a treated village, Post_{it} takes the value 1 if the individual is evaluating the ratings for the current council, and 0 if the evaluation is for the previous council. X_i includes respondent level controls: sex, religion, years of schooling and caste. Standard errors are clustered at the village level.

I find in Table 5 that a larger council has greater rating on a host of measures of quality and ability—we see that the coefficients are positive for all outcomes, and statistically significant for two of them: respondents hold better perceptions of council member’s qualifications, wherein the treatment causes 3.6% increase in the outcome relative to baseline. Further, we see that respondents increase their evaluations of council member’s ability: the treatment causes 3% increase in their perceptions of a council member’s ability to solve local problems relative to the baseline. An important caveat of this design is that responses have been collected at a single period, and respondent’s ratings of previous council members could be biased when they receive the treatment: the recall bias may differ between the treatment and control groups. As such, these results provide suggestive evidence that members of a larger council size are perceived to have greater quality and ability by their constituents.

Nevertheless, this analysis can be interpreted in two ways. First, that the effects on reputational gains and greater ability lead to an increase in access to the formal legal system, as argued above. An alternate explanation for these effects can be that as villages are assigned to larger councils and as politicians become accessible to voters, voters have better perceptions of their quality and ability leading to an increased trust in state institutions. This increased trust leads them to access the formal legal institutions, rather than direct intermediation by politicians.²¹

²¹This explanation is in line with the argument in Wilke (2025), who shows that citizens’ willingness to cooperate with capable state institutions can be attributed to changing perceptions about state capacity, and consequently, of state punishment.

Table 5: Effect of Larger Council on Quality and Ability of Council Members

	<i>Dependent variable:</i>			
	Beneficiary Fairness	Qualifications	Solve social problems	Solve local problems
ATT	0.03 (0.03)	0.06* (0.03)	0.02 (0.03)	0.06** (0.03)
Observations	88,980	83,416	86,102	88,673
Adjusted R ²	0.01	0.01	0.01	0.01

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the village level. The treatment is council population crosses population threshold which assigns two additional seats. Each observation takes an ordinal outcome taking values between 1 and 3, with 3 being the highest rating. ‘Honesty’ is a rating of the council member’s honesty and fairness. ‘Qualifications’ is a rating of the council member’s technical qualifications. ‘Solve social problems’ is a rating of the council member’s ability to solve social problems, such as disputes over land, marriage etc. ‘Solve local problems’ is a rating of the council member’s ability to solve local problems such as roads, education, water etc.

5.2.2 Increase in Descriptive Representation

Another reason that could explain the increase in legal mobilization from villages with larger councils is that a larger council increases representation of non-dominant groups, by decreasing the costs of running for election. In order to provide evidence for this mechanism, I use the data on the profiles of local elected representatives—particularly data from the Maharashtra State Election Commission for elections held in 2021 that includes the gender and caste of all candidates.²² I use the same sharp RD design to test whether the size of the legislature affects the number of representatives for diverse groups, and whether these increases may be driven by affirmative action or ‘quotas’.

From Panel A of Table 6, I find that the adding additional members to the council increases the representation of non-dominant groups within the council—they have a greater number of women, members from marginalized groups and women who are from marginalized groups. This indicates that the additional seats are not secured by members of the dominant groups, but are filled by a more diverse pool of representatives. A larger council size increases the number of women in the council by 18%. However, this is mostly driven by the increase in

²²This data was collected by Priyadarshi Amar during his dissertation fieldwork (Amar 2025) and I sincerely thank him for sharing the same.

the number of seats reserved for women—this increases by 14%. This is because quotas that reserve seats for female candidates in the council intersect with the treatment—since 50% of seats are reserved for women, 50% of the additional seats will also be reserved for women.

The number of members from marginalized groups in a larger council increases by 11% and the number of women from marginalized groups increases by 12%. In Appendix Table A5 I show that excluding uncontested and vacant seats, the total members in a council increases by 19%. This shows that the additional seats are almost entirely held by members from diverse groups.

What explains the increase in representation? While the theoretical underpinnings of a more representative council suggested that elections to larger councils might reduce the barriers to entry, I show in Appendix Table A9 that this is not the case: for each seat in a larger council, I do not find any change in the competitiveness of the election or the number of candidates contesting for elections at each seat. However, elections to a larger council increase the turnout by over 12%, indicating greater political mobilization in jurisdictions with a larger council size.

Next, I evaluate whether the increase in representation is driven by quotas at the council level. Quotas can affect representation beyond their target dimension ([Amar 2025](#); [Karekurve-Ramachandra and Lee 2020](#)), and from Panel B, we see that quotas are partly driving the greater descriptive representation but are not able to entirely explain the greater descriptive representation: while larger councils increase the number of seats reserved for women, they do not increase the number of seats reserved for those from marginalized groups, overall or for women.

Next, I discuss the implications of the increased descriptive representation on access to justice. If indeed it is an increase in representation of diverse groups that is driving the effect of additional council members, we should observe increase in case filings from diverse groups—that is, the increase in descriptive representation is leading to an increase in substantive representation of issues.

One way to test this is by focusing on cases that concern women. I first classify cases based

Table 6: Council Size and Representation

Panel A: Greater Representation of non-dominant groups			
	Female	Non-Dominant Group	Female from Non-Dominant Group
LATE	0.68*** (0.18)	0.44** (0.21)	0.26* (0.15)
Obs. (L)	4673	4673	4673
Obs. (R)	2518	2518	2518
Effective Obs. (L)	1261	1336	1365
Effective Obs. (R)	1096	1143	1155
Bandwidth	250	262	267
Bandwidth (Bias)	392	415	409
Panel B: Quotas in larger councils			
	Female	Non-Dominant Group	Female from Non-Dominant Group
LATE	0.54*** (0.15)	0.33 (0.21)	0.17 (0.13)
Obs. (L)	4673	4673	4673
Obs. (R)	2518	2518	2518
Effective Obs. (L)	1246	1200	1253
Effective Obs. (R)	1087	1054	1091
Bandwidth	248	239	248
Bandwidth (Bias)	378	392	386

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. Robust standard errors in paranthesis clustered at the council level. The treatment is councils with two additional members. Each observation is number of council members from the group for a council. ‘Marginalized’ sums the number of reserved seats for members belonging to the Scheduled Castes, Scheduled Tribes and Backward Classes. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons.

on litigant characteristics—whether the petitioners or respondents involve women, using litigant classifications from a subset of case-level data (Ash et al. 2025). Next, I produce a subset of cases based on case types—whether the case involves an issue concerning violence against women. Consistent with my theory, I show that there is a 28% increase in cases filed by female litigants, however we do not see any effect on cases that concern violence against women, as seen in Table 7. These results show the possible limits of increased representation: while they can affect overall filings by women, the increased diversity in councils does not alter social norms for case filings that concern the gravest of crimes against women.

Table 7: Increase in filings of cases concerning women

	<i>Dependent variable:</i>	
	Female Litigants	Violence Against Women
LATE	0.05* (0.03)	−0.0003 (0.01)
Obs. (L)	88568	88568
Obs. (R)	48624	48624
Effective Obs. (L)	27752	27576
Effective Obs. (R)	23784	23608
Bandwidth	283	281
Bandwidth (Bias)	465	436

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. Robust standard errors in parenthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation is number of filings from female litigants and the cases filed that concern violence against women a village in a particular year. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons.

6 Qualitative Evidence

I draw on qualitative data and shadowing to further highlight how and why elected representatives deal with local disputes. I use two sources of qualitative data. First, I use data from anonymized field notes collected by research assistants from Bussell (2020a). Fourteen village council presidents were ‘shadowed’ (Bussell 2020b) for approximately two days, as they carried out their regular daily activities. Bussell (2020b) explains: ‘this method allows for detailed descriptions of president’s behaviors and interactions’, and shares detailed notes

on her website. Second, I analyze qualitative data from phone interviews with 19 council members currently serving in village councils across Maharashtra.

Out of the fourteen presidents shadowed, 6 of them engaged in some activity pertaining to the police. These instances provide evidence of direct interactions with the police, where the council president assists with case filing. I reproduce the evidence from the field notes during the shadowing of council president D: “Council president D was approached for help in filing an FIR for a stolen television set. The president calls the head constable, requesting to file an FIR”. During the shadowing of council president G, the notes share this instance: “Council president G was approached by a woman with whom the school headmaster had misbehaved, and the president helped the woman by helping her write an application to the senior police officer”. Finally, during the shadowing of council president J, we see a similar incident: “Council president J called the police officer in charge to investigate a case of a woman from the village who had been harassed by a man”.

These instances highlight the fact that the council president has been approached for help with registering a complaint at the police station. I further conduct informational interviews with 19 council members, inquiring their perceptions on the role they play in dispute resolution. The short informational interviews focused on the role played by council members when their constituents experience disputes (see Appendix Section 5.2 for the questionnaire). I first inquired what role they play in dispute resolution, provided them with hypothetical scenarios of a civil dispute within a family involving land and inheritance, and a criminal issue wherein a murder had been committed. A limitation of this question was that in many villages, crimes like murders are rare, so few members had experience with such a grave crime. Nonetheless, the question elicited responses regarding how they would deal with grave crimes that would take place in the village. I reproduce a number of quotes and excerpts that provide suggestive evidence of the role played by council members in disputes.

I asked council members about the differences in handling civil and criminal disputes. Most respondents agreed that most small disputes get resolved within the village itself and there is no requirement to involve external authorities. When prompted to elaborate on these

differences, one president said, “Typically, the *police patil*²³ and *sarpanch*²⁴ will try to solve the dispute at the village level itself. Only in the case of a big crime, the police will get involved”. Another council member remarked: “If it is a major crime, it will go to the police station and the courts. Criminal cases cannot be resolved within the village”. This confirms the dual role played by politicians in dispute resolution: one is in local dispute resolution, and the other is in helping litigants access the formal legal institutions.

Second, I asked council members about the interactions they have had with the police, and to describe the circumstances. One council member proudly shared that he knows the *beat hawaldhar*.²⁵ Another member shared: “If there is any issue in the village, or a case is registered from the village, the police will call the *gram panchayat* member, and we try to see if we can resolve the issue at the village level itself, since it will be a cheaper resolution”. A village president shared: “In case of any investigation in the village, the police get in touch with police patil, sarpanch and *gram panchayat* member”. These interviews highlight the forms of interactions and instances wherein the officers of the law enforcement system are closely knit with elected council members, and thus council members are equipped with the know-how on how they can help their constituents file complaints and approach courts.

7 Conclusion

The United Nations defines access to justice as a fundamental principle of the rule of law—without which people cannot exercise their rights, challenge discrimination or hold decision-makers accountable. Access to justice is the principle that allows individuals to seek effective and substantive resolutions of their legal issues through a legal system that is fair and equitable. A strong legal system improves entrepreneurship (Chemin 2009), security of property rights (Abera and Chemin 2021), and firm productivity (Rao 2022).

Studying access to justice poses challenges for researchers, since there are many determinants

²³The Maharashtra Gazette explains that the “police patil” is a village level official, subordinate to the Police Sub-Inspector of the area concerned. They are responsible for the maintenance of peace and order in the village, and is expected to assist the Police in investigating the crimes. Details reproduced from the Maharashtra Gazette at <http://bit.ly/409iuDb> accessed on July 10, 2025.

²⁴The head of the elected council.

²⁵The *beat hawaldhar* is the constables in-charge of the village, usually placed at the police headquarters.

of why individuals approach legal authorities, and isolating the role of a particular determinant is difficult without a robust research design. Second, since instances of disputes are not experienced by everyone in the population, researchers find it difficult to measure access to justice through surveys. A major innovation of this study is to answer this question using a credible regression discontinuity design, interviews and micro-level data on court cases.

In this paper, I demonstrate that members of village councils can improve access to justice for rural citizens—particularly for criminal cases—almost doubling the number of criminal cases that end up being litigated in the formal legal system. This enables individuals to enforce their rights through the formal legal system, which can prevent power abuse and promote equality and human development.

Councils with greater size improve access to justice through greater descriptive representation, as these councils elect a greater number of members from non-dominant groups. This increase in representation can make them more effective as it allows the elected body to provide help and provide assistance to diverse members of the village community. Suggestive evidence also suggests that such bodies are also perceived to be of greater quality and ability.

In doing so, this paper makes important contributions to the literature on access to justice and legal mobilization ([Sandefur 2008](#); [Black 1973](#); [J. Krishnan et al. 2014](#); [Galanter 2010](#); [Genn 1999](#)). While prior literature discusses the role of village-level authorities in dispute resolution, my research reveals a new dimension: I find that elected members of local governments help constituents access formal legal institutions, which is essential to strengthening the rule of law, preventing conflict, and supporting economic development. Rather than substituting for a weak formal legal system, politicians play a complementary role, channeling cases towards the courts.

Second, this paper brings together the literature on constituency service and council and legislature size. Increasing the number of politicians may have mixed effects on public services ([Mignozzetti, Cepaluni, and Freire 2024](#)), finances ([Freire et al. 2023](#)) and overall development ([De Santo and Le Maux 2023](#)). This paper shows that larger councils can increase the overall capacity of the body by having a greater number of individual politicians engaged in constituency service. Studying this additional dimension—whether the number of politicians

affects behaviors linked to constituency service—can form the basis of a promising research agenda, evaluating the effects of larger councils on responsiveness, trust and accountability. Several governments in developing countries began a process of decentralizing development planning and management in the 1970s, to increase responsiveness and improve local development ([Bardhan 2002](#)). A key aspect of the decentralization process has been the formation smaller political units that elect a number of local representatives, creating local bodies for urban and rural areas. Such local bodies are not unique to India, and span countries across the world like Indonesia, Brazil, Uganda, China, South Africa, Pakistan and Bolivia ([Bardhan and Mookherjee 2006](#)). By demonstrating how members of these local bodies facilitate access to justice, I contribute to the larger comparative literature on local politics and decentralization.

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Appendix

The Political Roots of Legal Access: Evidence from Village Councils in India

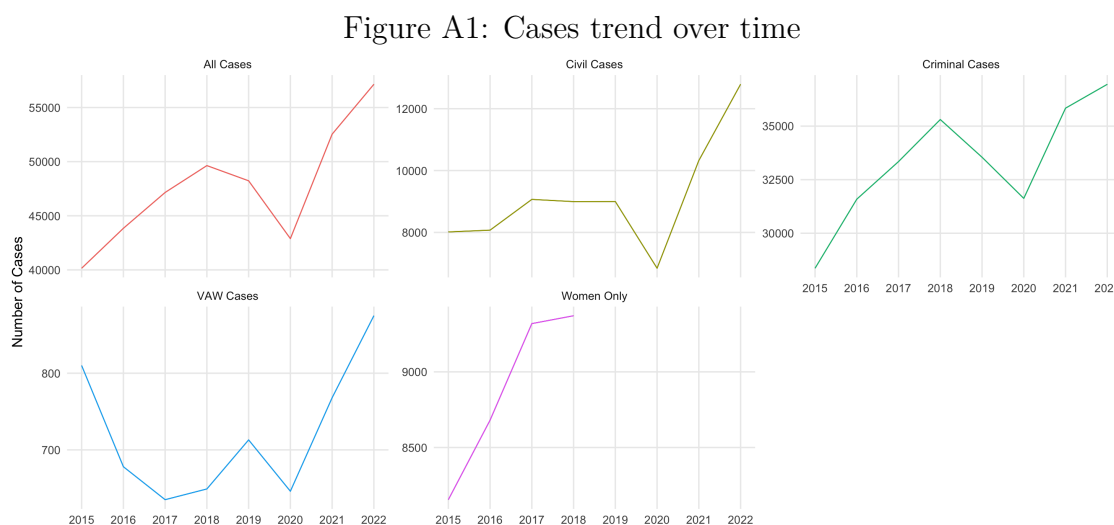
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1 Data Description

1.1 Trends over Time

In this section, I show some descriptive figures. Figure A1 plots the trend of the main outcome (case filings) over the years for each case type: all, civil, criminal, cases with female litigants and violence against women cases.

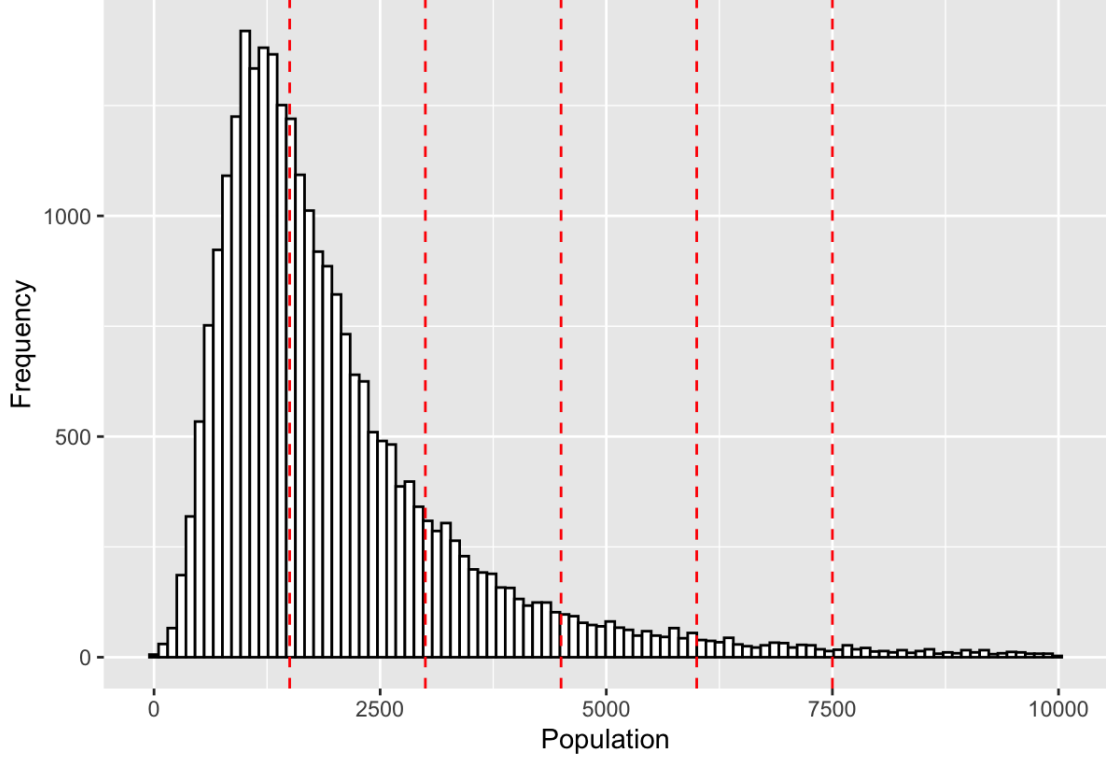


Note: The above plot shows the trend of the total number of cases in each year by category. Note that the cases with female litigants can only be measured upto 2018.

1.2 Distribution of Council Populations

Figure A2 shows a histogram of village council populations. Here we observe that the majority of the council data is around the 1500 cutoff, and the share of councils at each cutoff decreases at each subsequent cutoff.

Figure A2: Village Council Population Distribution



Note: Dotted red lines indicate population-based cutoffs that add two additional council members. Universe of data representing 26,536 village councils that could be mapped to their populations using administrative datasets.

1.3 Descriptive Statistics

Table [A1](#) shows the minimum and maximum populations for councils within each band, along with the count of villages within each band, and also displays the mean number of cases within each population band.

Table A1: Descriptive Statistics

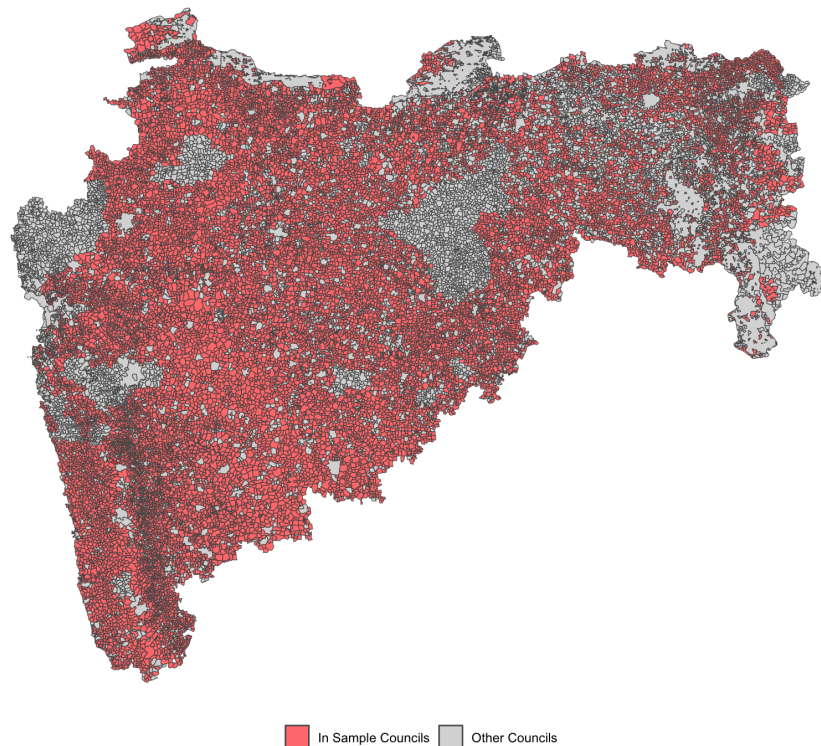
Population	Min Pop	Max Pop	Count	Members	All Cases	Civil Cases	Criminal Cases
<=1500	7	1500	12354	7	0.98	0.21	0.64
1501-3000	1501	3000	10162	9	1.99	0.44	1.32
3001-4500	3001	4499	2821	11	4.91	1.08	3.13
4501-6000	4501	6000	977	13	8.17	1.36	6.07
6001-7500	6002	7497	430	15	13.50	1.96	10.28
>=7501	7512	41559	569	17	23.25	3.03	18.56

Note: This table describes the councils in each block based on population: <1500, 1501-3000, 3001-4500, 4501-6000, 6001-7500 and >7501. Min Pop and Max Pop indicates the minimum and maximum population within the council's jurisdiction for each block. For example, for councils having a population of greater than 7500, the minimum population of such a council is 7512 while the maximum population is 41,559. Column 4 and 5 of the table indicates the number of such councils in the data and the council size assigned by the rule respectively. Finally, columns 6, 7, 8, 9 denote the on average the number of cases filed from councils within each block, according to case types.

1.4 Spatial Distribution

To provide an overview of the data dispersion, Figure A3 plots the village councils analysed in the paper. In this map, I plot every council in the state, indicating the councils for which both treatment and outcome data could be matched. The figure shows that the councils analyzed in the main analysis are well distributed across the state. Note that the outcome data was not available for the entire districts of Hingoli and Washim, in addition to some sub-districts.

Figure A3: Maharashtra Local Government Bodies: Councils in Main Analysis



Note: Councils shaded in red are the councils in the main analysis. We see from this figure that these are well-distributed across the state.

1.5 Variable Sources

The primary data used in the paper comes from a number of Indian public agencies. Further information is given in Table [A2](#).

1.6 Outcomes

- Number of all cases 2015-2022: Number of all cases filed in lower courts in the district courts at the level of Civil Judge Junior Division, Civil Judge Senior Division or Judicial Magistrate First Class for each village.
- Number of criminal cases 2015-2022: Number of criminal cases (as decided by coding rule given below) filed in lower courts in the district courts at the level of Civil Judge Junior Division, Civil Judge Senior Division or Judicial Magistrate First Class for each

Table A2: Data Sources

Name	Source Description	Data Provided	url
eCourts	Maharashtra District Courts	Village-level case data	https://court.mah.nic.in/courtweb/index_eng.php
LGD	Local Government Directory	Council-Village mapping	https://lgdirectory.gov.in/
shrug	Census of India 2011	population data	https://www.devdatalab.org/shrug
Elections	Maharashtra State Election Commission	elections data	https://mahasec.maharashtra.gov.in/ , Fieldwork by Priyadarshi Amar
REDS 2006	Rural Economic and Demographic Survey 2006	survey data	Data provided by Andrew Foster

village, as determined by case classification rule in Table A3

- Number of civil cases 2015-2022: Number of civil cases (as decided by coding rule given below) filed in lower courts in the district courts at the level of Civil Judge Junior Division, Civil Judge Senior Division or Judicial Magistrate First Class for each village, as determined by case classification rule in Table A3
- Number of violence against women cases 2015-2022: Number of violence against women cases (as determined by case classification rule in Jassal (2024)) filed in lower courts in the district courts at the level of Civil Judge Junior Division, Civil Judge Senior Division or Judicial Magistrate First Class for each village.

1.7 Subordinate Courts

The data spans the universe of cases in the District Courts of Maharashtra.

Table A3: Rules to classify cases as civil or criminal

Case Type	Manual Classification	Detailed Reason
R.C.S.	civil	regular civil suit
Civil M.A.	civil	
M.A.C.P.	civil	motor accident claims
Reg Dkst	civil	civil court judgement
Arbitration R.D	civil	arbitration only for civil
Marriage Petn.	civil	
L.A.R.	civil	land acquisition reference
R.C.A.	civil	regular civil appeal
Spl.C.S.	civil	special civil suit
PWDVA Appln.	civil	domestic violence
M.C.A.	civil	misc civil appeal
Spl .Dkst	civil	civil court judgement
MACP. Dkst.	civil	motor accident claims
M.J.Cases	civil	Misc judicial cases
MACP. M.A.	civil	motor accident petition
Succession	civil	succession post deceased
Darkhast	civil	
L.R.DKST.	civil	
Sum.Civ.Suit	civil	
Civil Suit	civil	
Civil Revn.	civil	
Civil Appeal PPE	civil	
S.C.C.	criminal	summary criminal case
R.C.C.	criminal	regular criminal case
Cri.M.A.	criminal	
Cri.Bail Appln.	criminal	bail application
Other Misc.Cri.Appln	criminal	
Sessions Case	criminal	sessions court
Cri.Rev.App.	criminal	criminal revision application
Cri.Appeal	criminal	criminal appeal
Cri.Case	criminal	
Spl Case MSEB	criminal	MSEB theft of electricity
Cri.Municipal Appeal	criminal	
Juvenile Cri.MA	criminal	

On the Civil side, the Maharashtra Civil Courts Act¹ lays down the rules to be followed. The State Government has the power to create districts, and the presiding judge in the district is called the “District Judge”. The state government can also appoint joint or additional district judges. Further, in each district, a number of “subordinate civil courts” can be created by the state government which are subordinate to the District court. Additionally, the judges practicing in these subordinate courts are called “Civil Judges”. The location of such courts and local limits of the ordinary jurisdiction are to be determined by notifications in the Official Gazette. The District Court also has appellate jurisdiction from decrees and orders of the subordinate courts.

On the Criminal side, the Code of Criminal Procedure, Maharashtra, lays down the rules to be followed². The State Government establishes a Court of Session for every session division (this is basically a district) which is presided over by a judge. Further, the state government establishes courts of Judicial Magistrates (JMs First Class and Second Class) across places and a particular local area has jurisdiction to try any cases or class of cases. The senior-most judge in this court is the ‘Chief Judicial Magistrate’ (CJM). The CJM is subordinate to the Sessions judge, and other JMs are subordinate to the CJM.

The data only looks at subordinate courts that are located at the sub-district (*taluka*) level - these are at the lowest level and include courts of the Civil Judge Junior Division, Civil Judge Senior Division and Judicial Magistrate First Class and Judicial Magistrate Second Class. This helps us get around two important issues:

- (1) Maharashtra has established “District Courts” at the District Capital, and “Additional District Courts” at other locations in order to geographically spread out the higher court. The local limits of these courts are not always publicized on the website.
- (2) While aggregating civil and criminal cases, we can now be confident that they are of a similar nature
 - Civil Judge Junior Division: can hear cases that do not exceed a pecuniary value of 500,000 INR (~ \$6000)

¹Link to Maharashtra Civil Courts Act: <https://bit.ly/mh-civil-rules>

²Link to Code of Criminal Procedure, Maharashtra: <https://bit.ly/mh-crim>

- Civil Judge Senior Division: can hear cases that do not exceed a pecuniary value of 1,00,000 INR ($\sim$ \$10,000)
- Judicial Magistrate First Class: can try cases that involve imprisonment of less than three years or fines not exceeding ten thousand rupees

2 Treatment Details

2.1 Multiple Treatments at 3000

I searched for government programs that would contaminate any of the five cutoffs. While no such programs appear to use the 1500, 4500, 6000 and 7500 cutoffs, a cutoff of 3000 is being used to determine eligibility for a number of schemes:

- (1) A nationwide development program launched in 2014 called *Saansad Adarsh Gram Yojana*³, wherein each member of parliament can choose a group of villages in their constituency to implement developmental programs.
- (2) The Government of Maharashtra using the 3000 threshold to determine additional staffing for the village panchayats⁴
- (3) The prize money for the “Tanta Mukti Scheme” (dispute-free villages) increases by 33% at the 3000 population cutoff⁵

I thus only focus on the uncontaminated cutoffs for the main analysis.

2.2 Treatment Dose

The main results in the paper pools treatment effects using the various cutoff. It is important to note that a number of factors change at each cutoff, most important being other policies in place and design and size of the wards. These differences are summarized in Table A4. There are other policies in place at 500 and 3000 cutoffs. The 4500 and 7500 cutoffs add a

³Source: <https://bit.ly/sansad-agy>, Last Accessed: 10 July, 2025, Page archived locally.

⁴Source: <https://bit.ly/gp-staffing>, Last Accessed: 10 July, 2025, Page archived locally.

⁵Source: <https://bit.ly/tantamuktischeme>, Last Accessed: 10 July, 2025, Page archived locally.

Table A4: Heterogeneity in Ward Size and Design

Threshold	Details	Ward Design	Ward Size
500	roads construction policy	NA	NA
1500	7 to 9 (28%↑)	3,2,2 changes to 3,3,3	~500
3000	9 to 11 (22%↑) development policy additional staff	3,3,3 changes to 3,3,3,2	~1000 to ~750
4500	11 to 13 (18% ↑)	3,3,3,2 changes to 3,3,3,2,2	~1125 to ~900
6000	13 to 15 (15% ↑)	3,3,3,2,2 changes to 3,3,3,3,3	~1200
7500	15 to 17 (13% ↑)	3,3,3,3,3 changes to 3,3,3,3,3,2	~1500 to ~1250

Notes: Threshold indicates population-based cutoffs. Details provide the policy in place, along with the increase in council size in brackets. Ward design indicates the number of candidates and the total number of wards. For example, 3,2,2 indicates 3 wards with the first, second and third ward electing 3, 2 and 2 members respectively. Ward size shows how the number of persons changes in each ward at the threshold; at the 1500 and 6000 threshold there is no change in ward size since the number of wards remain the same.

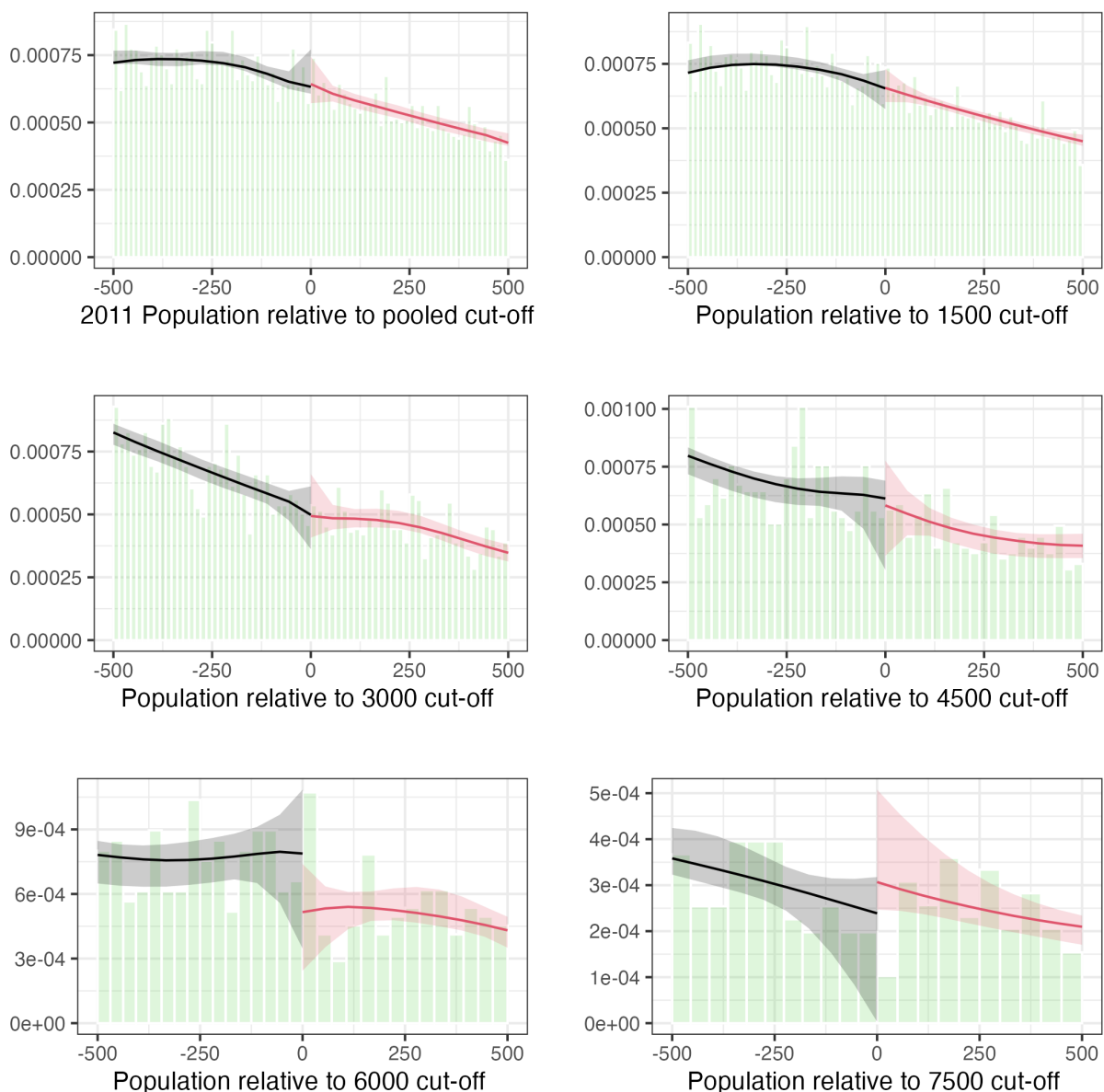
new ward for the additional council members. The 6000 cutoff has more than double the ward size as compared to the first cutoff, as seen in column 4 in Table A4.

2.3 Regression Discontinuity Assumptions: No Sorting

One of the key identification assumptions of the regression discontinuity design is that there is no manipulation of the forcing variable (in this case, council population) near the cutoff. This would be the case if influential persons in a village were able to falsify the population numbers to allocate either fewer or greater number of members than prescribed by the design. Given that the enumerators are typically government school teachers or local officials, it might be possible for local elites to influence the enumeration process. Another way this might happen is if people migrate to villages with either larger or smaller council sizes such that they are governed by their desired number of council members. While both these processes

seem unlikely, I plot the density of the running variable and conduct a formal test from Cattaneo, Jansson, and Ma (2020) at each of the population-based cutoffs individually. The local polynomial of degree 2 are constructed using a triangular kernel function, with ‘jackknife’ standard errors.

Figure A4: Density Plots and Continuity Test



Notes: Each plot in the figure shows the density of population based on the 2011 census around each cutoff. Figures and tests provide evidence for the absence of discontinuities at the thresholds.

2.4 Regression Discontinuity Assumptions: Continuity

The second key identification assumption of the regression discontinuity design is that pre-treatment covariates are balanced around the population threshold. The lack of balance might imply confounding – the estimates of the treatment may be biased.

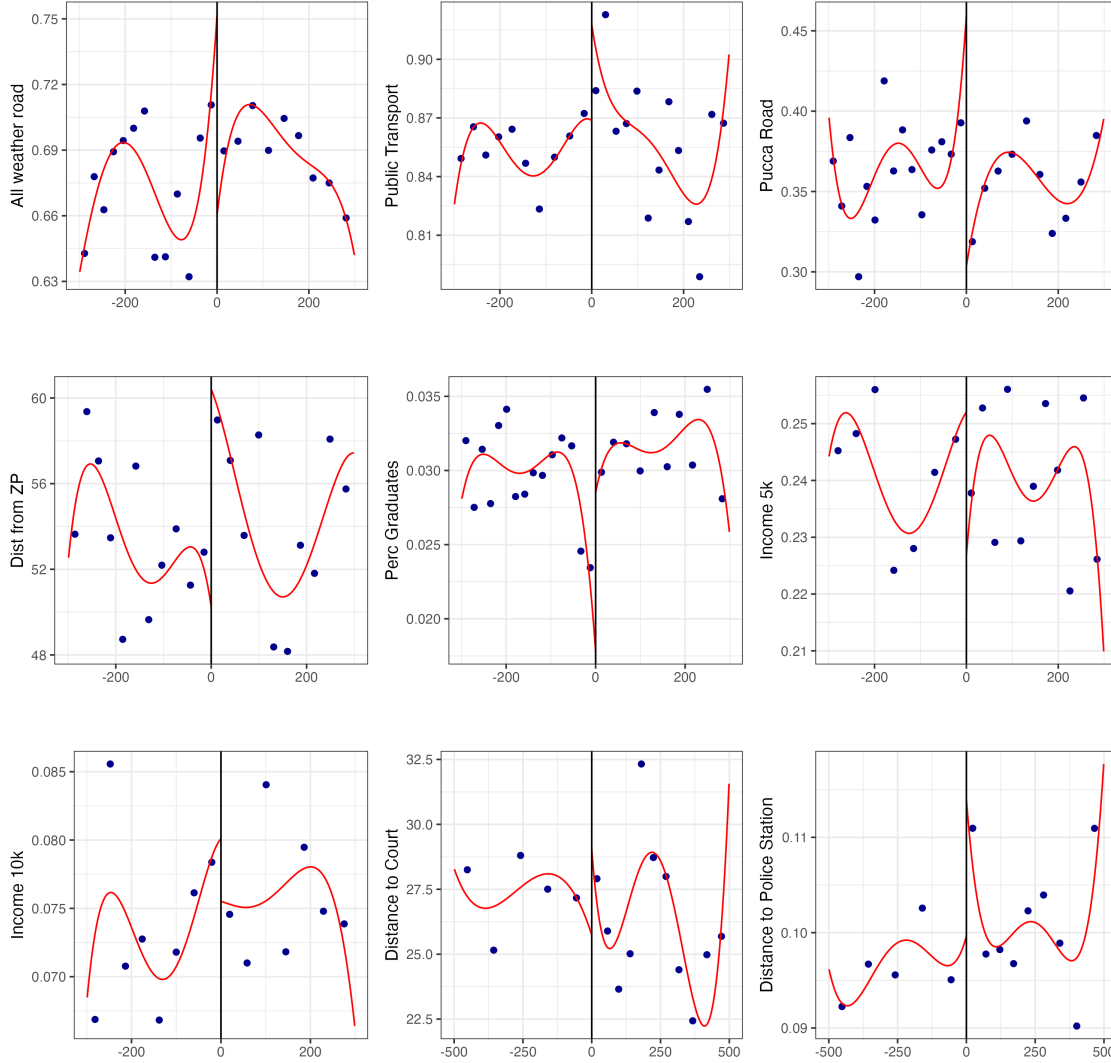
I test this assumption by collecting data from a number of data sources, particularly focusing on factors that are most likely to lead to confounding in this set-up: connectivity (availability of roads, transport and distance to headquarters), area (in square meters) governed by the council, number of graduates and high income earners. While the main paper discusses the differences between the treatment and control groups near the threshold, I visualize the data using plots here in [Figure A5](#)

Visually, it appears that a larger council is further away from the *Zilla Parishad* (ZP) that indicates the district capital, and has a greater number of graduates. On the other hand, smaller village councils have a smaller share of high-income earners. Finally, in larger councils, while there appears to be a greater probability of having access to public transport, there is also a lower probability of having an all weather or internal road. There does not appear to be any conclusive evidence on the presence of large discontinuities in pre-treatment covariates.

2.5 Test for Compliance

We show compliance with the rule at each of the cutoffs. First, I assemble data for all council elections held in Maharashtra, that includes both the candidates and winners. I produce the regression discontinuity estimates on the number of politicians at each cutoff in [Table A11](#). While we would expect that these estimates are precisely 2, they will not be perfect due to the absence of data for seats where no elections were conducted: that is, the council member was elected unopposed. This leads to missingness in the elections data. Further, while the election data is obtained directly from the State Election Commission, there were a lot of errors and inconsistencies in the data: duplicate names, incorrect/missing seats and so on. Efforts were made to reconcile it with the data on elected members from *MahaGram*: an online repository of elected members for each council. However, the lack of cleaning,

Figure A5: Covariate Balance



Notes: Each blue dot in the figure represents an outcome (indicated on the y-axis) for each village council, based on quantile-spaced binning. Red lines denote local polynomial regressions of order four. Data for the first five outcomes comes from the 2011 census, while data for the last two outcomes (on incomes) comes from the Socio-Economic and Caste Census 2012.

maintenance and updating of these data prevents a perfect comparison. As such, all results should be interpreted as intent-to-treat estimates.

I use an alternate approach to show that the treatment lead to an increase in council size, using data from the 320 villages in which a survey was conducted to understand patterns of decision-making in a village council (A. R. Heinze, Brulé, and Chauchard 2025; A. Heinze 2025). From this dataset, I look at 220 villages that are affected by the first cutoff. I find that

Table A5: Compliance

	<i>Dependent variable:</i>					
	Pooled	1500	3000	4500	6000	7500
LATE	1.32*** (0.26)	1.23*** (0.24)	1.56*** (0.53)	1.79*** (0.56)	0.81 (1.66)	2.87** (1.22)
Obs. (L)	4868	4106	1683	497	190	75
Obs. (R)	2612	2088	643	205	92	227
Effective Obs. (L)	1337	733	212	126	40	75
Effective Obs. (R)	1152	693	200	100	32	73
Bandwidth	257	172	163	266	183	1078
Bandwidth (Bias)	402	259	279	421	282	1381

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council level. Each observation is number of elected council members measured from a village in the 2021 elections. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. 'Pooled' cutoff excludes 3000, as used in the main analysis. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

assignment to treatment increases the number of council members by almost two members.

Table A6: Compliance from Survey of Village Councils

	<i>Dependent variable:</i>
	1500 Cutoff
LATE	1.96** (0.84)
Obs. (L)	106
Obs. (R)	66
Effective Obs. (L)	35
Effective Obs. (R)	31
Bandwidth	279
Bandwidth (Bias)	406

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council level. Each observation is number of elected council members measured from a village in the survey discussed. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

3 Alternate Explanations

3.1 Electoral Cycles

To explore whether the timing of elections matters, I break down the results by the number of years since the council election year - whether it is one, two, three or four years since the council election.

Table A7 shows evidence of an election cycle for all cases: the effects appear to be strongest as elections approach. Table A9 and A8 corroborate this pattern: the effects of council size and access to justice are strongest in the years leading to election. These findings provide evidence to demonstrate a possible electoral cycle for helping constituents gain access to justice.

Table A7: Results by election year for all cases

	<i>Dependent variable:</i>				
	Election Year	1 year post	2 years post	3 years post	4 years post
LATE	-0.03 (0.88)	1.01 (0.64)	1.28* (0.66)	1.45** (0.68)	1.38* (0.83)
Obs. (L)	7583	5504	8849	10888	10888
Obs. (R)	4436	3171	5037	6282	6282
Effective Obs. (L)	3834	1429	1885	2561	2899
Effective Obs. (R)	3145	1263	1805	2322	2545
Bandwidth	455	235	202	214	240
Bandwidth (Bias)	678	450	418	430	448

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation is cases measured from a village in a particular year based on the election cycle. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

3.2 Electoral Context and Mobilization

Perhaps one reason why members of larger councils are more effective in facilitating access to justice could relate to the electoral context. An electoral explanation for this phenomenon can be that elections to larger councils are more competitive and increase turnout from

Table A8: Results by election year for criminal cases

	<i>Dependent variable:</i>				
	Election Year	1 year post	2 years post	3 years post	4 years post
LATE	−0.14 (0.79)	0.64 (0.51)	1.01* (0.59)	1.14* (0.61)	1.05 (0.75)
Obs. (L)	7583	5504	8849	10888	10888
Obs. (R)	4436	3171	5037	6282	6282
Effective Obs. (L)	3504	1371	1764	2517	2865
Effective Obs. (R)	2889	1214	1672	2269	2521
Bandwidth	412	223	191	210	236
Bandwidth (Bias)	621	447	404	421	437

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation is cases measured from a village in a particular year based on the election cycle. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

Table A9: Results by election year for civil cases

	<i>Dependent variable:</i>				
	Election Year	1 year post	2 years post	3 years post	4 years post
LATE	0.14 (0.14)	0.14 (0.13)	0.16* (0.09)	0.17** (0.08)	0.14* (0.09)
Obs. (L)	7583	5504	8849	10888	10888
Obs. (R)	4436	3171	5037	6282	6282
Effective Obs. (L)	3525	2060	2512	3874	3866
Effective Obs. (R)	2898	1758	2227	3313	3297
Bandwidth	413	340	264	320	319
Bandwidth (Bias)	593	515	422	514	510

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation is cases measured from a village in a particular year based on the election cycle. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

diverse groups, and the incentive to be re-elected causes members to be more engaged in their constituencies and address disputes. Further, it may be that citizens in larger councils are more politically active given that there is now a larger group of candidates (simply on account of a larger number of seats up for grabs), and this political activity leads to greater contact with constituents, leading to a higher turnout during elections. Finally, members of larger councils can be perceived to be more legitimate by citizens, and hence citizens are more likely to approach them. I can test this by analyzing the effect of larger council sizes on the share of NOTA votes – NOTA is short for ‘None of the Above’ and such votes are cast when the voter does not support any of the candidates in council elections. Thus a greater number of NOTA votes could signal lower legitimacy and support.

I test this by analyzing the effect of larger council sizes on (1) the share of close elections (with a margin of victory less than 10%), (2) the number of contesting candidates, (3) percentage of constituents turning out to vote and (4) the share of votes that are indicated as “none of the above”.

Table [A10](#) indicates that some of these mechanisms might be at play - elections to larger council sizes are not more competitive, do not have greater number of candidates contesting per seat or changes the number of NOTA votes cast by voters. We observe a statistically significant 12.8% increase in turnout.

3.3 Council improves other police-related functions

One alternate explanation for the increased criminal cases is that additional council members are able to strengthen other functions pertaining to the police. For example, adding council capacity might increase their effectiveness in recruiting a village police officer (known as a police patil). I use the same data of 220 villages for which a survey was conducted in Maharashtra ([A. R. Heinze, Brulé, and Chauchard 2025](#); [A. Heinze 2025](#)), and I find that assignment to treatment has no statistically significant effect on whether a police patil is recruited.

Table A10: Larger councils and electoral context

	<i>Dependent variable:</i>			
	Close Elections	Candidates	Turnout	NOTA
LATE	0.01 (0.01)	0.01 (0.02)	349.47** (142.25)	1.91 (7.47)
Obs. (L)	69117	69611	10841	10841
Obs. (R)	47304	47595	5845	5845
Effective Obs. (L)	30160	24643	3111	3946
Effective Obs. (R)	28270	23794	2622	3225
Bandwidth	391	318	258	327
Bandwidth (Bias)	594	518	403	493

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council-year level. The treatment is councils with two additional members. Each observation measured from a council during an election. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

Table A11: Does village have a police patil?

	<i>Dependent variable:</i>
	0=Yes / 1 = No
LATE	-0.05 (0.35)
Obs. (L)	105
Obs. (R)	62
Effective Obs. (L)	24
Effective Obs. (R)	26
Bandwidth	232
Bandwidth (Bias)	363

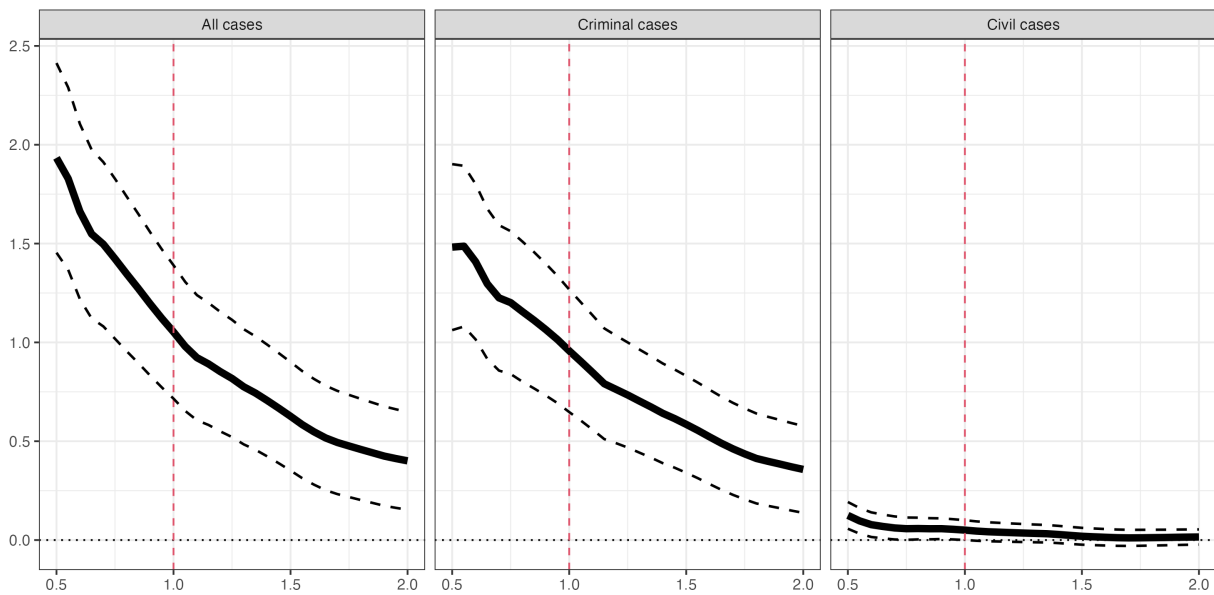
Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council level. Each observation indicates whether a police patil has been recruited from the village in the survey discussed. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

4 Sensitivity Analysis

4.1 Sensitivity to Bandwidth Choice

In this section, I present sensitivity tests for bandwidth selection. I follow the suggestions of Bueno and Tunon (2015)⁶ and vary bandwidth from 50% to 200% of the Calonico, Cattaneo, and Titiunik (2014) estimate in Figure A6. We see that our results are not sensitive to the choice of bandwidth.

Figure A6: Sensitivity to Bandwidth Choice



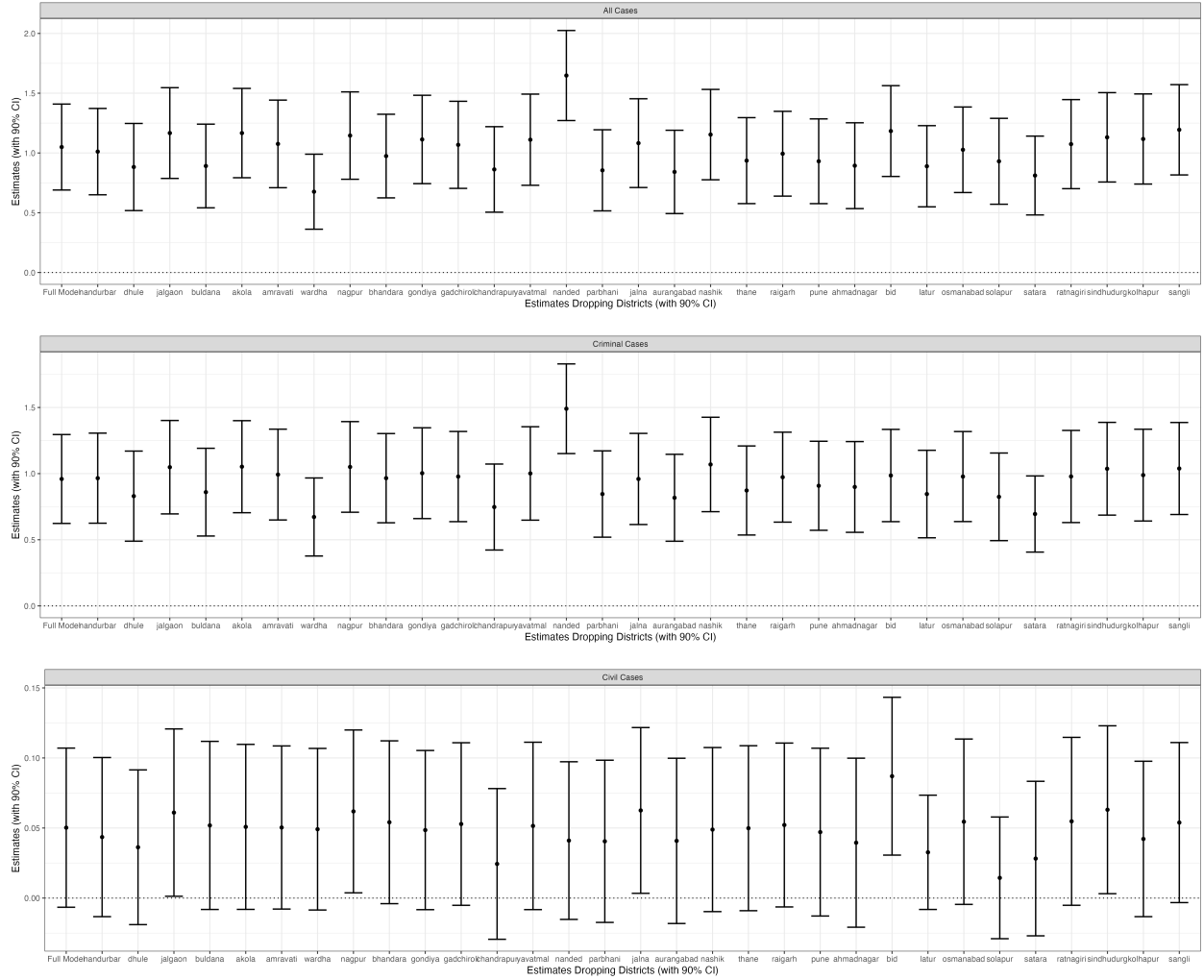
Note: The above plot shows the sensitivity to bandwidth choice by category: all cases, civil cases and criminal cases.

4.2 Sensitivity to District Characteristics

Due to the large size of the state, Maharashtra has a lot of geographic variation. For instance, some districts could be more geographically compact that allows individuals to access courts easily as compared to districts that are more geographically spread out. Other districts are I run the analysis by dropping one district at a time to investigate district-wide heterogeneity. The results are in Figure A7.

⁶Graphical Presentation of Regression Discontinuity Results, The Society for Political Methodology Blog. Available at: <https://bit.ly/rd-link>

Figure A7: Sensitivity to District Characteristics



Note: The above plots show the sensitivity to district characteristics by each case category separately – that is, for all cases, criminal cases and civil cases.

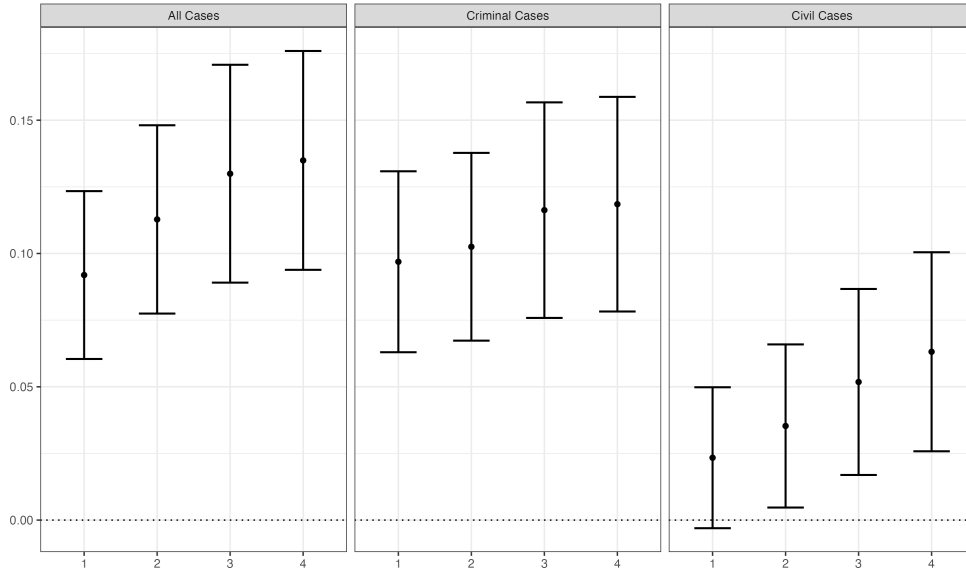
4.3 Sensitivity to Functional Form

In Figure A8, I show that the results are robust to changing the functional form: using linear ($p=1$), quadratic ($p=2$), cubic ($p=3$) and quartic ($p=4$).

4.4 Results at a Placebo cut-off

In Table A12, I produce results at half of the cutoffs: that is, I produce the results using a placebo cutoff of 750, 2250 and 3750 persons. I cannot use half the 3000 and 6000 cutoffs,

Figure A8: Sensitivity to Functional Form



Note: The above plots show the sensitivity to functional form (given on the x-axis) by each case category separately – that is, for all cases, criminal cases and civil cases.

since that gives me 1500 and 3000, which themselves are cutoffs. Nevertheless, I find that there is no discernible treatment effect at half the cutoffs for the cutoffs analysed.

Table A12: Outcomes at a Placebo Cutoff

	<i>Dependent variable:</i>		
	All Cases	Civil Cases	Criminal Cases
LATE	−0.02 (0.10)	0.03 (0.03)	−0.06 (0.07)
Obs. (L)	82376	82376	82376
Obs. (R)	98024	98024	98024
Effective Obs. (L)	19648	25472	16968
Effective Obs. (R)	21488	28664	18544
Bandwidth	184	239	158
Bandwidth (Bias)	334	387	273

Note: * $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$. Standard errors in paranthesis clustered at the council-year level. Each observation is number of cases measured from a village in each year. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons. The values in brackets indicate the robust standard errors.

4.5 Alternate Design

In this section, I show that my results are robust to restricting the data to newly formed councils. There are about 2221 new councils that were formed between 2018 and 2022. These new councils are typically created by taking the local areas that form the older council, and splitting them into two or more councils. For example, in June 2025, a council comprising three villages: Panchala (Bk), Panchala (Kh) and Guguldosh, in Ramtek, Nagpur, was split into two groups: the first group named Panchala (Bk) comprised of Panchala (Bk) and Panchala (Kh), while the second group named Gugoldoh comprised of the Gugaldoh village⁷.

While some of these newly created councils get assigned a smaller council size (based on the same population thresholds), others get assigned a larger council size with two additional members. I run the main analysis for these villages only in Table A13. We observe partially consistent results here – having two additional council members increases the number of cases filed from the newly formed councils with larger councils, however the effects are not statistically significant.

Table A13: Newly Formed Councils

	<i>Dependent variable:</i>		
	All cases	Criminal	Civil
LATE	0.74 (0.76)	0.58 (0.46)	0.15 (0.47)
Obs. (L)	2067	2067	2067
Obs. (R)	976	976	976
Effective Obs. (L)	357	371	497
Effective Obs. (R)	243	250	294
Bandwidth	152	157	212
Bandwidth (Bias)	293	317	313

Note: *p<0.1; **p<0.05; ***p<0.01. Standard errors in paranthesis clustered at the council level. Each observation is number of cases measured from a village for each year. Obs. (L) and Obs. (R) indicate the number (and effective number) of observations to the left and right of the cutoff respectively. Bandwidth is in number of persons.

⁷Details obtained from Maharashtra Rural Development Ministry Website, <http://bit.ly/4lpGN8u>, Last Accessed on 10 July, 2025. Page archived for reference. Notifications for several other examples can be accessed on the ‘Notifications’ page here: <http://bit.ly/4IREWsZ>

5 Additional details

5.1 Rural Economic and Demographic Survey Questions Used

I accessed data from the Rural Economic and Demographic Survey conducted in 2005-06 by obtaining a minimal risk research IRB approval from the University of Wisconsin–Madison. I submitted the same to Dr. Andrew Foster, who shared the restricted data for the 2005-06 years. I restrict the analysis to respondents from Maharashtra, which covers 5078 respondents across 17 villages.

Below, I reproduce the exact wording of the questions from which the outcomes are constructed for the difference-in-differences analysis. Each response takes an ordinal outcome taking values between 1 and 4, with 1 being the highest rating for the question [High=1; Medium=2; Low=3; Not aware=4].

1. Honesty: Evaluation of Elected Representatives [Honesty and fairness: p83q3, p83q4]
2. Qualifications: Evaluation of Elected Representatives [Technical qualifications of the candidate: p83q9, p83q10]
3. Solve social problems: Evaluation of Elected Representatives [Ability to solve social problems, such as disputes over land, marriage etc: p83q18, p83q19]
4. Solve local problems: Evaluation of Elected Representatives [Ability to solve local problems such as roads, education, water etc: p83q15, p83q16]

5.2 Qualitative Interview Questionnaire

In Summer 2025, I conducted interviews with 19 council members in Maharashtra. I started with collecting the contact details of currently serving council members in Maharashtra, from which I drew a random sample of 100 contact numbers. I then hired an agency to reach out to the phone numbers and ask the following questions:

1. How many years have you been a council member?
2. Do villagers come to you to solve disputes?

- a. What kinds of disputes do you not attempt to resolve?
 - b. What types of cases do villagers typically approach you to resolve?
 - c. What types of cases do villagers typically not approach you to resolve?
3. There is a property dispute in a family in your village. They approach you for help. How do you help them?
4. There is a murder in your village. You are approached by the family of the deceased for help. How do you help them?
5. Why do you help villagers with their problems?
6. Do you know any lawyers or anyone from the police force? How?

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